Out. No. 20260619/1

To the Deputy Prosecutor General
Oleksiy Khomenko
01011, Kyiv, 13/15 Riznytska St.
Defense Counsel: Advocate Vladyslav Miftakhutdinov
01011, Kyiv, 22 Rybalska St., Entrance 13
Tel.: 097 327 02 69
E-mail: v.miftakhutdinov@vbpartners.ua
In the interests of: Oleksandr Vyacheslavovych Boguslayev
Criminal proceeding
No. 22017000000000272

COMPLAINT

against the prosecutor's ruling on refusal to satisfy the Motion on determination of investigative jurisdiction of the Criminal proceeding

I, advocate Vladyslav Miftakhutdinov, provide legal assistance to Oleksandr Vyacheslavovych Boguslayev (hereinafter – the Client; powers – Annexes 1, 2).

The Main Investigation Directorate of the Security Service of Ukraine (hereinafter – the MID SSU) is conducting a pre-trial investigation within Criminal Proceeding No. 22017000000000272 (hereinafter – the Criminal Proceeding, Annex 3).

Prosecutors of the Office of the Prosecutor General exercise procedural guidance within the Criminal Proceeding. Prosecutor Safaryan O.E. has been appointed as the head of the group (Annex 4).

On 29 May 2026, the defense applied to Safaryan O.E. with a Motion on determination of investigative jurisdiction of the criminal proceeding to the National Anti-Corruption Bureau of Ukraine (hereinafter – the NABU) (Annex 5).

The motion was substantiated by the fact that another suspect in the Criminal Proceeding – Boguslayev V.O. is suspected of committing crimes provided for by Arts. 191, 209 of the CC of Ukraine. According to the investigation's version, he allegedly committed the specified crimes during the period he held the status of a People's Deputy of Ukraine and with the use of such status.

On 3 June 2026, prosecutor Safaryan O.E. issued a Ruling on refusal to satisfy such Motion (hereinafter – the Ruling, Annex 6). The refusal was substantiated by the following:

(1) The crimes provided for by Art. 191 and Art. 209 of the CC of Ukraine were detected during the investigation of other criminal offenses falling under the investigative jurisdiction of investigators of the security bodies;

(2) On 11 July 2019, the Prosecutor General adopted a decision on instructing the MID SSU to conduct pre-trial investigation of the Criminal Proceeding due to its inefficiency;

(3) Pre-trial investigation in the Criminal Proceeding is also conducted on the facts of commission of other criminal offenses;

(4) Boguslayev V.O., at the time of the notification of suspicion, no longer held the status of a People's Deputy of Ukraine;

(5) The completion by Boguslayev V.O. of the commission of the crimes incriminated against him, provided for by Arts. 191, 209 of the CC of Ukraine, occurred after the disposal of JSC "Motor Sich" from state ownership;

(6) On 30 September 2025, the acting Prosecutor General resolved the dispute on investigative jurisdiction of the Criminal Proceeding and determined it behind the MID SSU.

However, we believe that the Ruling of prosecutor Safaryan O.E. is unlawful and unjustified and is subject to revocation in view of the following:

(1) The Criminal Proceeding, pursuant to the provisions of the CPC, belongs to the exclusive subject-matter investigative jurisdiction of the NABU;

(2) Detectives of the NABU, pursuant to the CPC of Ukraine, for the purpose of investigating crimes belonging to the investigative jurisdiction of the NABU, may investigate crimes assigned to the investigative jurisdiction of investigators of other bodies. Such decision is taken by the Director of the NABU in agreement with the prosecutor of the SAPO;

(3) The CPC of Ukraine does not link the investigative jurisdiction of the NABU with a person having the active status of a People's Deputy of Ukraine at the moment of completion of the crime.

(4) The fact of disposal of JSC "Motor Sich" from state ownership in no way affects the determination of investigative jurisdiction of the Criminal Proceeding to the NABU.

In addition, the Notification of suspicion to Boguslayev V.O. (p. 12 of the Notification of suspicion to Boguslayev V.O.) indicates the amount of damages caused to the state as a result of the alleged commission by him of the crime provided for by Art. 191 of the CC of Ukraine.

(5) The instruction to conduct pre-trial investigation to the MID SSU in 2019 and the resolution of the dispute on investigative jurisdiction do not constitute grounds for refusal to determine investigative jurisdiction to the NABU.

The foregoing is substantiated by the following:

1. Regarding the exclusive investigative jurisdiction of the Criminal Proceeding to the NABU.

As has already been stated, the pre-trial investigation of the Criminal Proceeding is conducted by investigators of the MID SSU.

At the same time, conducting the pre-trial investigation of the Criminal Proceeding by investigators of the MID SSU violates the requirements of Clause 1 Part 5 Art. 216, Part 1 Art. 218, Part 5 Art. 36 of the CPC of Ukraine in view of the following.

On 28 April 2025, Boguslayev V.O. was notified of suspicion of committing criminal offenses provided for by Part 5 of Art. 191, Part 3 of Art. 209 of the CC (hereinafter – the Suspicion).

On 25 April 2025, in the Criminal Proceeding, a Notification of suspicion was drawn up regarding Boguslayev O.V. concerning the crime provided for by Part 3 of Art. 209 of the CC of Ukraine.

According to the investigation's version:

(1) Boguslayev V.O., during 1994-2015, abusing his official position, allegedly unlawfully took possession of shares of JSC "Motor Sich" at an undervalued cost as a result of failure to index the value of property during the privatization of SE "Motor Sich".

(2) Subsequently, Boguslayev V.O. and Boguslayev O.V. allegedly legalized proceeds obtained through crime, namely sold shares of JSC "Motor Sich" (which were acquired through crime) to representatives of the PRC through controlled non-resident companies.

(3) Thereafter, the funds received were transferred to personal accounts of Boguslayev O.V.

At the same time, the crimes incriminated by the investigation against Boguslayev V.O. were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – 25 May 2006-29 August 2019 (Annexes 7-10).

Thus, according to the investigation's version, the taking of possession of property in an especially large amount (Part 5 of Art. 191 of the CC) was committed by a person who at that time was a People's Deputy of Ukraine. This, in turn, indicates the exclusive investigative jurisdiction of the Criminal Proceeding to the NABU.

Thus, pursuant to Clause 1 Part 5 Art. 216 of the CPC of Ukraine, detectives of the NABU conduct pre-trial investigation of criminal offenses provided for, inter alia, by Arts. 191, 209 of the CC of Ukraine, if the criminal offense was committed, in particular, by a People's Deputy of Ukraine.

In addition, pursuant to Clause 2 Part 5 Art. 216 of the CPC, detectives of the NABU conduct pre-trial investigation of criminal offenses provided for, inter alia, by Arts. 191, 209 of the CC of Ukraine, if the amount of damage caused by the offense exceeds 5 thousand sizes of the subsistence minimum (as of today, UAH 16,640,000).

According to the investigation's version, the amount of damage caused by the criminal offense provided for by Part 5 Art. 191 of the CC of Ukraine, as of 17 June 1994, constitutes over UAH 93.5 million, and as of 2021, taking into account consumer price indices (inflation), constitutes UAH 18.05 billion (p. 12 of the Notification of suspicion, Annex 11).

The size of the subject matter of the criminal offense provided for by Art. 209 of the CPC of Ukraine constitutes USD 650 million (p. 31 of the Suspicion).

Consequently, the Criminal Proceeding is within the investigative jurisdiction of the NABU, since the criminal offenses incriminated against Boguslayev V.O. – Part 5 Art. 191, Part 3 Art. 209 of the CC of Ukraine, were allegedly committed by him during the period of his tenure as a People's Deputy of Ukraine, and the amount of damage caused by them exceeds the threshold established by Clause 2 Part 5 Art. 216 of the CPC of Ukraine.

In addition, such investigative jurisdiction of the NABU in the present case is exclusive (i.e. such that precludes the investigation of the Criminal Proceeding by other bodies) in view of the following:

(1) Pursuant to Part 5 Art. 36 of the CPC of Ukraine, it is prohibited to instruct another body of pre-trial investigation with conducting pre-trial investigation of a criminal offense assigned to the investigative jurisdiction of the NABU, except in cases of existence of objective circumstances that preclude the functioning of the NABU or the conduct of pre-trial investigation by it under martial law.

In this Criminal Proceeding, circumstances precluding the functioning of the NABU are absent.

(2) Part 5 Art. 36 of the CPC of Ukraine establishes that conducting pre-trial investigation of a criminal offense committed by a People's Deputy of Ukraine is prohibited to other bodies of pre-trial investigation, except the NABU and the central apparatus of the SBI in accordance with their investigative jurisdiction.

Taking into account the above, the Criminal Proceeding belongs to the exclusive investigative jurisdiction of detectives of the NABU.

Thus, Part 5 Art. 36, Parts 2, 5 Art. 216 of the CPC of Ukraine establish the absence of authority in bodies of the Security Service of Ukraine to conduct pre-trial investigation in the Criminal Proceeding.

At the same time, pursuant to Part 2 Art. 19 of the Constitution of Ukraine, state power bodies, their officials are obliged to act only on the basis, within the powers and in the manner provided for by the Constitution and laws of Ukraine.

Thus, the NABU is the sole body authorized to conduct pre-trial investigation in the Criminal Proceeding.

2. Regarding the possibility of NABU detectives to investigate crimes assigned to the investigative jurisdiction of investigators of other bodies.

As was already stated earlier, the grounds for refusal set forth in the Ruling of prosecutor Safaryan O.E. are, in particular:

(1) The crimes provided for by Art. 191 and Art. 209 of the CC of Ukraine were detected during the investigation of other criminal offenses assigned to the investigative jurisdiction of investigators of security bodies;

(2) Pre-trial investigation in the Criminal Proceeding is also conducted on the facts of commission of other criminal offenses.

At the same time, the crimes provided for by Arts. 191 and 209 of the CC of Ukraine were investigated within separate criminal proceedings No. 42022000000001850 and No. 42024000000000741. Subsequently, these criminal proceedings were merged with criminal proceeding No. 22017000000000272.

At the same time, a criminal proceeding regarding a People's Deputy of Ukraine is the exclusive investigative jurisdiction of the NABU.

Thus, instead of transferring the investigation of the criminal proceeding to the authorized body, the prosecution merged these criminal proceedings into one.

By doing so, the prosecution itself created grounds for investigating crimes assigned to the investigative jurisdiction of the MID SSU and the NABU.

Along with this, it should be noted that pursuant to Para. 14 Part 5 Art. 216 of the CPC of Ukraine, detectives of the NABU, in addition to crimes belonging to the investigative jurisdiction of the NABU, may investigate crimes assigned to the investigative jurisdiction of other bodies. A decision on this is taken by the Director of the NABU in agreement with the prosecutor of the SAPO.

Moreover, the criminal offenses provided for by Arts. 191, 209 of the CC of Ukraine may be severed into a separate proceeding, the investigation of which will be instructed to the NABU.

Thus, the CPC of Ukraine expressly provides that the NABU may conduct pre-trial investigation of offenses assigned to the investigative jurisdiction of other bodies.

3. Regarding the argument on the absence in Boguslayev V.O. of the status of a People's Deputy of Ukraine at the moment of notification of suspicion.

The prosecutor, in refusing to satisfy the Motion, indicated that Boguslayev V.O., at the time of the notification of suspicion, no longer held the status of a People's Deputy of Ukraine.

By doing so, the prosecutor links the possibility of assigning the Criminal Proceeding to the investigative jurisdiction of the NABU exclusively with a person having the active status of a People's Deputy.

As was already stated, according to the investigation's version, the crimes incriminated against Boguslayev V.O., provided for by Arts. 191, 209 of the CC of Ukraine, were committed during the period of his tenure in the status of a People's Deputy of Ukraine.

Pursuant to Clause 1 Part 5 Art. 216 of the CPC of Ukraine, detectives of the NABU conduct pre-trial investigation of criminal offenses provided for, inter alia, by Arts. 191, 209 of the CC of Ukraine, if the criminal offense was committed, in particular, by a People's Deputy of Ukraine.

We note that the CPC of Ukraine does not establish a requirement that the special status of the alleged subject of a crime must extend to the entire period of investigation of the proceeding (in particular, that at the moment of notification of suspicion the person must continue to hold such status).

That is, for the period of investigation, a person may not possess the corresponding status. For the investigative jurisdiction of the NABU, the decisive factor is that the person possessed such special status at the moment of commission of the alleged criminal offense.

Moreover, the CPC of Ukraine does not establish that the alleged commission of a crime must be linked with the person having such special status (with its use).

Instead, the Notification of suspicion to Boguslayev V.O. (p. 23 of the Suspicion) expressly states that the latter, "taking advantage of his name and influence as a People's Deputy of Ukraine", in 2014 entered into negotiations with citizens of the PRC for the purpose of selling shares of JSC "Motor Sich".

That is, even according to the investigation's version, Boguslayev V.O. used his status as a People's Deputy to facilitate the commission of the crime provided for by Art. 209 of the CC of Ukraine.

This assertion of the prosecutor additionally indicates the groundlessness of his Ruling dated 3 June 2026, as he, pointing to the absence in Boguslayev V.O. of the active status of a People's Deputy and its use, ignores the contrary assertions stated in the Notification of suspicion.

Thus, the absence in a person of the active status of a People's Deputy of Ukraine at the moment of completion of the crime is not an obstacle to the investigative jurisdiction of the Criminal Proceeding to the NABU.

4. Regarding the absence of impact of the fact of disposal of JSC "Motor Sich" from state ownership on the possibility of conducting pre-trial investigation by detectives of the NABU.

Among the grounds for refusal to determine the investigative jurisdiction of the Criminal Proceeding to the NABU, the prosecutor also indicated the disposal of JSC "Motor Sich" from state ownership at the moment of completion of the alleged commission by Boguslayev V.O. of the crimes provided for by Arts. 191, 209 of the CC of Ukraine.

Evidently, such conclusion of the prosecutor is linked with an incorrect interpretation of the provisions of Clause 2 Part 5 Art. 216 of the CPC of Ukraine.

Thus, pursuant to Clause 2 Part 5 Art. 216 of the CPC of Ukraine, one of the conditions for investigative jurisdiction of the Criminal Proceeding to the NABU is that the amount of damage caused in criminal offenses provided for, inter alia, by Arts. 191, 209 of the CC of Ukraine, exceeds five thousand sizes of the subsistence minimum for able-bodied persons established at the time of commission of the crime.

At the same time, this requirement applies to special subjects, in particular, to officials of a state body.

As has already been repeatedly stated, during the period of alleged commission of the crimes provided for by Arts. 191, 209 of the CC of Ukraine, Boguslayev V.O. was a People's Deputy of Ukraine.

Pursuant to Part 3 Art. 18 of the CC of Ukraine, officials are persons who permanently, temporarily or under special authority exercise functions of representatives of authority, as well as permanently or temporarily occupy positions in state power bodies.

The Joint Chamber of the Criminal Cassation Court of the Supreme Court in its ruling in case No. 991/3966/20 dated 27 November 2023 indicated that: "a People's Deputy is a representative of authority, since he exercises the powers of a representative of the legislative branch of power and, accordingly, is a special subject of committing the criminal offense provided for by Art. 364 of the CC, in the form of abuse of power".

Accordingly, Boguslayev V.O. was an official of a state body within the meaning of Art. 18 of the CC of Ukraine and Clause 2 Part 5 Art. 216 of the CPC of Ukraine, and therefore falls under the scope of Clause 2 Part 5 Art. 216 of the CPC of Ukraine.

In addition, the Constitutional Court of Ukraine in Decision dated October 17, 2002 No. 17-rp/2002 stated: "As a state power body, the Verkhovna Rada of Ukraine is a collegial body consisting of four hundred and fifty People's Deputies of Ukraine".

Thus, Boguslayev V.O., being a People's Deputy of Ukraine, was also an official of a state body.

Also, the Suspicion indicates that the amount of damage caused by the criminal offense provided for by Part 5 Art. 191 of the CC of Ukraine, as of 17 June 1994, constitutes over UAH 93.5 million, and as of 2021, taking into account consumer price indices (inflation), constitutes UAH 18.05 billion (p. 12 of the Suspicion).

The specified amount of damage exceeds the threshold established by Clause 2 Part 5 Art. 216 of the CPC of Ukraine.

Likewise, since according to the investigation's version, the funds derived as a result of taking possession of shares of JSC "Motor Sich" were subsequently legalized, it should be stated that the amount of legalized property exceeds the threshold established by Clause 2 Part 5 Art. 216 of the CPC.

Consequently, the crimes under Arts. 191, 209 of the CC of Ukraine, allegedly committed by Boguslayev V.O., fall under Clause 2 Part 5 Art. 216 of the CPC of Ukraine.

Thus, the fact of disposal of JSC "Motor Sich" from state ownership at the moment of completion of the alleged commission by Boguslayev V.O. of the crimes provided for by Arts. 191, 209 of the CC of Ukraine in no way affects the investigative jurisdiction of the Criminal Proceeding to the NABU.

5. Regarding the absence of impact of instructing pre-trial investigation and resolving the dispute on investigative jurisdiction on the prosecutor's duty to determine investigative jurisdiction to the NABU.

Other arguments of the prosecutor for refusing to satisfy the Motion are, in particular, that:

(1) On 11 July 2019, the Prosecutor General adopted a decision on instructing the MID SSU to conduct pre-trial investigation of the Criminal Proceeding due to its inefficiency;

(2) On 30 September 2025, the acting Prosecutor General resolved the dispute on investigative jurisdiction of the Criminal Proceeding and determined it behind the MID SSU.

Part 2 Art. 218 of the CPC of Ukraine regulates the procedure of actions of an investigator/prosecutor in the event of detecting non-investigative jurisdiction of a criminal proceeding to an investigative body.

In particular, the specified norm establishes the duty of the prosecution to duly respond to detected facts and circumstances that indicate a violation of investigative jurisdiction within a criminal proceeding.

Thus, pursuant to Para. 3 Part 2 Art. 218 of the CPC of Ukraine, a prosecutor, in the event of independent establishment of circumstances indicating the necessity to determine another investigative jurisdiction, within ten days from the day of establishing such circumstances, is obliged to adopt a ruling on determination of investigative jurisdiction.

Consequently, the specified norm establishes:

(1) the duty of the prosecutor to determine another investigative jurisdiction;

(2) the ground for determining another investigative jurisdiction;

(3) the period within which the prosecutor must adopt a decision on changing the investigative jurisdiction of the proceeding.

We note that the specified norm establishes precisely the duty of the prosecutor, in the event of violation of investigative jurisdiction, to take actions aimed at determining the proper investigative jurisdiction.

At the same time, the CPC of Ukraine contains no other conditions for the prosecutor to perform his direct duty.

In particular, there is no prohibition whatsoever for a prosecutor to independently determine the investigative jurisdiction of a proceeding if it had previously been determined by the Prosecutor General or his deputy.

Thus, instructing pre-trial investigation and resolving the dispute on investigative jurisdiction in no way affect the prosecutor's duty to determine investigative jurisdiction to the NABU.

6. Regarding the right of appeal.

Pursuant to Part 6 Art. 36 of the CPC of Ukraine, the Prosecutor General, his deputy, during pre-trial investigation, have the right to revoke unlawful and unjustified rulings of lower-level prosecutors.

On 3 June 2026, in violation of the requirements of the CPC of Ukraine, prosecutor Oleksandr Safaryan refused to change the investigative jurisdiction of the criminal proceeding, and issued a Ruling thereon, the illegality of which is substantiated in Sections 1-5 of this Complaint.

Thus, the Ruling dated 3 June 2026 on refusal to satisfy the Motion on determination of investigative jurisdiction of the criminal proceeding to the NABU is unlawful and is subject to revocation by a superior prosecutor under the procedure of Part 6 Art. 36 of the CPC.

Taking into account the above, guided by Arts. 8, 9, 36, 216, 218 of the CPC of Ukraine, -

I REQUEST:

(1) To revoke the Ruling of prosecutor of the Office of the Prosecutor General Safaryan Oleksandr Eduardovych dated 3 June 2026, issued within criminal proceeding No. 22017000000000272 On refusal to satisfy the Motion on determination of investigative jurisdiction of the criminal proceeding behind the National Anti-Corruption Bureau of Ukraine, due to its illegality and groundlessness.

(2) To determine the investigative jurisdiction of Criminal Proceeding No. 22017000000000272 behind the National Anti-Corruption Bureau of Ukraine in connection with the presence of conditions provided for by Clauses 1, 2 Part 5 Art. 216 of the CPC of Ukraine and Para. 4 Part 5 Art. 35 [sic] of the CPC of Ukraine.

(3) To inform advocate Vladyslav Miftakhutdinov of the results of consideration of the Motion at the address: 01011, Kyiv, 22 Rybalska St., Entrance 13 and at the email address: v.miftakhutdinov@vbpartners.ua.

Annexes:

1. Certified copy of the Certificate on the right to practice law.
2. Certified copy of the Order on the provision of legal assistance.
3. Certified copy of the Extract from the URPI regarding Criminal Proceeding No. 22017000000000272.
4. Certified copy of the Ruling of the First Deputy Prosecutor General on determining the group of prosecutors dated 7 February 2025.
5. Certified copy of the Motion on determination of investigative jurisdiction dated 29 May 2026.
6. Certified copy of the Ruling on refusal to satisfy the Motion on determination of investigative jurisdiction dated 3 June 2026.
7. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 25 May 2006 to 23 November 2007 (V convocation).
8. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 23 November 2007 to 12 December 2012 (VI convocation).
9. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 12 December 2012 to 27 November 2014 (VII convocation).
10. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 27 November 2014 to 29 August 2019 (VIII convocation).
11. Certified copy of the Notification of suspicion to Boguslayev V.O.

19 June 2026

Defense Counsel **V.S. Miftakhutdinov**

NATIONAL ASSOCIATION
OF ADVOCATES OF UKRAINE

CERTIFICATE

ON THE RIGHT TO PRACTICE LAW



Series VL No. 1340

Pursuant to the Law of Ukraine **"On the Bar and Practice of Law"**

Cit. **Miftakhtdinov Vladyslav Serhiyovych**
(surname, first name, patronymic)

has the right to practice law

Grounds: decision **of the Bar Council of Volyn Region**
(name of the regional Bar Council)

dated **27 August 2021** No. **2/69-8**

Chairman **of the Bar Council of Volyn Region**
(name of the regional Bar Council)





H.A. Rudenko

" 27 " August 2021

L.S. 691818

SERIES AS **No. 1154435**

(link to advocate profile in ERAU)

NATIONAL ASSOCIATION OF ADVOCATES OF UKRAINE

ORDER

ON THE PROVISION OF LEGAL ASSISTANCE

Boguslayev Oleksandr Vyacheslavovych

(surname, first name, patronymic or name of the person provided with legal assistance)

on the grounds of:

legal assistance agreement / assignment of the body (institution) authorized by law to provide free legal assistance **No. w/n** dated **" 09 " May 2025**

in **the Department of International Cooperation of the Office of the Prosecutor General, the Office of the Prosecutor General**

(name of the body in which legal assistance is provided)

Advocate

Miftakhutdinov Vladyslav Serhiyovych

(surname, first name, patronymic of the advocate providing legal assistance)

Certificate of the right to practice law No. 1340 dated August 27, 2021
issued by the Bar Council of Volyn Region on the basis of
decision No. 2/69-8 dated August 27, 2021

Issued by the bar association:
"Law Association "VB PARTNERS"

(full name of the bar association issuing the order)

01011, Kyiv, city of Kyiv, Pecherskyi district, 22 Rybalska St., Entrance 13

(workplace address of the advocate if it differs from the registered office address of the bar association issuing the order)

By the legal assistance agreement
the advocate's powers are not limited.

" 03 " September 2025

Advocate: _____
(Advocate's signature)

Head of the bar association: _____
(Head's signature)



EXTRACT
FROM THE UNIFIED REGISTER OF PRE-TRIAL INVESTIGATIONS

Criminal Proceeding Number: 22017000000000272

Date of registration of proceeding (severance of materials of pre-trial investigation): 6 July 2017 8:57:57 PM

№1

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	6 July 2017
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	Deposit Guarantee Fund (Code 21708016)
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	6 July 2017 8:50:20 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 14 Part 1; Art. 113 (in force until 7 March 2022)
Brief statement of circumstances that may indicate commission of criminal offense: During the period from 2016 to the present time, unidentified individuals from among current and former officials and ultimate beneficial owners of Public Joint-Stock Company "Motor Sich" (USREOU code 14307794), acting by prior conspiracy among themselves, with the purpose of weakening the state through destruction of the specified enterprise as an object of significant economic and defense importance, committed a series of transactions for the purchase and sale of a controlling stake in the Factory to non-resident companies "Business House Helena, AG" (Panama), "Enfields Trade & Capital Corp." (Panama), "Waldo Trade Ltd." (Virgin Islands), "Granum Corporation" (Panama), "Skyrizon Aircraft Holdings Limited" (Virgin Islands), "Likatron Enterprises Limited" (Cyprus), "Ventalina Management Ltd" (Nevis), which have no intention of conducting business activities by the specified enterprise, but plan its liquidation and removal of assets, including production capacities of the only factory in Ukraine for the production of civil and military turbojet engines for aviation equipment, outside of Ukraine.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№2

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	4 August 2017
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	notifications of enterprises, institutions, organizations and officials
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	4 August 2017 1:58:00 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 212 Part 3
Brief statement of circumstances that may indicate commission of criminal offense:	

It has been established that officials of JSC "MOTOR SICH" (USREOU code 14307794), acting intentionally, by prior conspiracy with unidentified persons, in violation of the provisions of tax legislation, as a result of minimizing the value of privatized property, evade the payment of taxes, which leads to the non-receipt by the State Budget of Ukraine of funds in particularly large amounts.
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№3

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	4 August 2017
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	notifications of enterprises, institutions, organizations and officials
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	4 August 2017 2:03:01 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 209 Part 2 (in force until 28 April 2020)
Brief statement of circumstances that may indicate commission of criminal offense: It has been established that officials of JSC "MOTOR SICH" (USREOU code 14307794), acting intentionally, by prior conspiracy with unidentified persons, acquired property obtained as a result of committing a socially dangerous, unlawful act that preceded the legalization (laundering) of proceeds, when conducting operations for privatization of property of State Enterprise "MOTOR SICH", by violating the established norms of the Law of Ukraine "On Privatization of State Property" dated 4 March 1992.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№4

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15 July 2019
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquiry officer (authorized person of another department) of criminal offense, including during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15 July 2019 9:40:44 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111 Part 1
Brief statement of circumstances that may indicate commission of criminal offense:	

During the period from 2015 to the present time, unidentified officials and beneficial owners of PJSC "Motor Sich" (Ukraine, USREOU 14307794), from among citizens of Ukraine, acting intentionally, provide assistance to the Russian Federation in conducting subversive activities against Ukraine, through manufacturing, repair, maintenance and extension of the service life of aviation gas turbine engines for airplanes and helicopters and/or their parts and components, in the interests of the Russian army, the state company of the Russian Federation "Flight Detachment Russia", the Federal Security Service of the Russian Federation, JSC "218 Aviation Repair Plant" (Russian Federation). In order to ensure the aforementioned unlawful activity, in particular the export from Ukraine to the Russian Federation of goods of military purpose and dual-use for the purpose of their military end-use, the Russian Federation involved JSC "Borisphen" (Russian Federation), "Helicopter complexes and multifunctional systems" (Russian Federation, abbreviated name "VKMS"), "Vladimir Klimov – Motor Sich" (Russian Federation, abbreviated name: "VK-MS"), "Losiny Ostrov" (Russian Federation), "Aviaremont-MS" (Russian Federation), "LLC "Aviatech" (Russian Federation), "Donetsk branch of "LLC "Aviatech" (DPR), "D.O.O. Inzeniring BN" (Bosnia and Herzegovina), "Double Power FZE" (United Arab Emirates).
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№5

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21 August 2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by prosecutor of criminal offense
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21 August 2020 4:23:55 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 15 Part 3; Art. 190 Part 4 (in force until 11 August 2023)
Brief statement of circumstances that may indicate commission of criminal offense: On 29 January 2016 between company Skyrizon Aircraft Holdings Limited and JSC "Motor Sich" loan agreement No. 3104/16-D (FEU) was concluded. According to the terms of this agreement, JSC "Motor Sich" received a loan of 100,000,000 (one hundred million) US dollars. On 28 December 2019 between company Skyrizon Aircraft Holdings Limited and Yarga Investments LTD, an agreement on assignment of the claim right (cessation) was concluded. According to the terms of the specified agreement, the claim right under the loan agreement dated 29 January 2016 No. 3104/16-D (FEU) passed to Yarga Investments LTD. At the same time, representatives of company Skyrizon Aircraft Holdings Limited did not conclude the agreement on assignment of the claim right (cessation) dated 28 December 2019. Thus, unidentified persons attempted to take possession by deception (fraud) of funds in particularly large amounts belonging to company Skyrizon Aircraft Holdings Limited.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№6

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	9 September 2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	

detection from another source of circumstances that may indicate commission of criminal offense:	
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	9 September 2020 12:06:21 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 190 Part 4 (in force until 11 August 2023)
Brief statement of circumstances that may indicate commission of criminal offense: To the Investigation Department of the Main Department of the National Police in Odesa Region an application was received from a representative of company "S.A.H.L." regarding the fact of taking possession by deception of property, namely funds, in particularly large amounts (UEO 1878 dated 9 September 2020).	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№7

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	9 September 2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	9 September 2020 12:09:54 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 358 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: To the Investigation Department of the Main Department of the National Police in Odesa Region an application was received from a representative of company "S.A.H.L." regarding the fact of forgery of documents on the basis of which unidentified persons by deception took possession of property, namely funds, in particularly large amount.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№8

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	23 November 2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	

Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	23 November 2020 3:35:06 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 15 Part 3; Art. 190 Part 4 (in force until 11 August 2023)
Brief statement of circumstances that may indicate commission of criminal offense: It has been established that unidentified persons, acting on behalf of company Skyrizen Aircraft Holding Limited and with the aim of fraudulently taking possession of the funds of the said company, forged an agreement on assignment of the right of claim dated 28 December 2019, according to which Skyrizen Aircraft Holding Limited allegedly assigned the right of claim in favor of company Yarga Investments LTD in the amount of 100 000 000 US dollars under the loan agreement dated 29 January 2016 No. 3104/16-D(FEU), concluded between Skyrizen Aircraft Holding Limited and JSC “Motor Sich” (UEO 8792 dated 23 November 2020)	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№9

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	3 December 2020
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	3 December 2020 8:35:18 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 364 Part 2
Brief statement of circumstances that may indicate commission of criminal offense: During the period from 15 July 1994 to the present time, officials and beneficial owners of JSC “Motor Sich”, acting out of mercenary motives, abusing their official position, by prior conspiracy with officials of the State Property Fund of Ukraine unlawfully received into free use and possess state property without payment of mandatory payments for use in the total amount of UAH 520 million, which caused grave consequences to legally protected state and public interests.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№10

Date of receipt of application, notification of commission of criminal offense or detection from another	20 August 2020

source of circumstances that may indicate commission of criminal offense:	
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	Vitiuk Vasyl Viktorovych
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29 December 2020 4:02:22 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 15 Part 1; Art. 113 (in force until 7 March 2022)
Brief statement of circumstances that may indicate commission of criminal offense: By the ruling of the investigating judge of the Shevchenkivskyi District Court of Kyiv O.V. Mielieshak dated 4 November 2020, an authorized person (investigator) of the Security Service of Ukraine was obliged to enter into the Unified Register of Pre-trial Investigations information based on the application of V.V. Vitiuk dated 18 August 2020, according to which unidentified persons, through filing on 5 August 2020 an application to the Commercial Court of Zaporizhzhia Region on behalf of LLC “Asset Management Company and Pension Funds Administration “Aktiv Plus” (USREOU 32977421) in the interests of the corporate non-state pension fund “Ukrainian Pension Foundation” (USREOU 34001274), signed by Yu.V. Hordiichuk, are attempting to establish control over key assets of JSC “Motor Sich” (USREOU 14307794) and liquidate it as a strategic enterprise.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№11

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25 January 2021
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25 January 2021 5:29:19 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1 (in force until 1 July 2020)
Brief statement of circumstances that may indicate commission of criminal offense: In July – December 2019, officials of PJSC “Motor Sich” (USREOU 14307794) in the area of activity of the Chernihiv Customs of the SFS, in violation of the established procedure for the implementation of international transfers of goods subject to state export control, carried out the export of aviation engines VK-2500-03 (without installed purchased units) to the address of company “SIA AEROSERVICE” (Republic of Latvia).	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№12

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	16 March 2021
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	17 March 2021 5:10:49 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 233 Part 2
Brief statement of circumstances that may indicate commission of criminal offense: In the period from 1993 to 2015, officials of the State Property Fund of Ukraine, acting by prior conspiracy by a group of persons, carried out privatization of state property, namely the integrated property complex of SOE “Motor Sich”, by understating its value through determining it in a manner not provided for by law, namely unlawfully excluded from the total value of the integrated property complex of SOE “Motor Sich” property that was subject to privatization, did not conduct mandatory indexation of fixed assets of the privatization object, in large amounts, that is, for an amount that exceeds by a thousand and more times the tax-free minimum income of citizens.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№13

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	18 March 2021
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	18 March 2021 10:24:02 AM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: upon the fact that V.O. Boguslayev, honorary president of JSC “Motor Sich”, in 2017, acting in the interests of the Russian Federation, sold the controlling stake of shares of JSC “Motor Sich” to the Chinese company Skyrizon, thereby providing a foreign state with assistance in conducting subversive activity against Ukraine with the aim of causing damage to the defense capability of Ukraine.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№14

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25 June 2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	25 June 2022 11:59:54 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111 Part 2
Brief statement of circumstances that may indicate commission of criminal offense: In 2022, citizens of Ukraine V.O. Boguslayev and N.B. Ulyanenko provide representatives of the Russian Federation with assistance in conducting subversive activity against Ukraine to the detriment of the defense capability and state security of Ukraine, under martial law.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№15

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15 August 2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	16 August 2022 6:02:32 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: Onto the territory of Ukraine to the address of Ukrainian enterprise JSC “Motor Sich” (USREOU 14307794) by enterprises of the aggressor state, the Ministry of Defense of the Republic of Belarus, as well as enterprises of the Republic of Belarus, which supports the Russian Federation in armed aggression against Ukraine through providing the armed forces of the aggressor state with unhindered access to its territory and military infrastructure facilities for conducting combat operations against Ukraine, special-purpose machines and mechanisms were imported for carrying out repair works on the basis of agreements that as of 15 August 2022 are not fulfilled, whereby the conduct of economic activity in cooperation with the aggressor state is actually ensured, paying taxes to the budget of the aggressor state.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№16

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	15 August 2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	16 August 2022 6:08:14 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: Onto the territory of Ukraine to the address of Ukrainian enterprise and LLC “Vinnytsia Aviation Plant “VIAZ” (USREOU 37617817) by enterprises of the aggressor state, the Ministry of Defense of the Republic of Belarus, as well as enterprises of the Republic of Belarus, which supports the Russian Federation in armed aggression against Ukraine through providing the armed forces of the aggressor state with unhindered access to its territory and military infrastructure facilities for conducting combat operations against Ukraine, special-purpose machines and mechanisms were imported for carrying out repair works on the basis of agreements that as of 15 August 2022 are not fulfilled, whereby the conduct of economic activity in cooperation with the aggressor state is actually ensured, paying taxes to the budget of the aggressor state.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№17

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	28 September 2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	28 September 2022 11:32:43 AM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: Officials of JSC “Motor Sich” (USREOU 14307794), including those who also have citizenship of the aggressor state, upon order of a number of enterprises of the aggressor state and the Republic of Belarus, which in turn perform works and/or provide services for the ministry of defense of the russian federation, the federal security service of the russian federation and other military and law enforcement agencies of the aggressor state and the Republic of Belarus, carry out repair, service maintenance and provision with spare parts of aviation equipment, whereby transfer of material resources to armed or paramilitary formations of the aggressor state is carried out, as well as conduct of economic activity in cooperation with the aggressor state.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	

Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№18

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21 October 2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21 October 2022 2:40:27 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 111-1 Part 4
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev, in pursuance of an agreement with a representative of the aggressor state the RF, organized deliveries of commodity products – spare parts for capital repairs of engines TV3-117VM, AI-9V, AI-25TLK, which are used in military aviation of the RF, in the total amount of UAH 71 265 189.44.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№19

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21 October 2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	21 October 2022 2:43:02 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 111-2 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev in May 2022 agreed to a proposal from a representative of the aggressor state regarding the supply of goods – “aviation engines and spare parts “TV3-117VM series 02”, VK-2500, instruments “NR-3000” etc., which are used in military aviation of the RF.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	

Consequence of investigation of criminal offense:

№20

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	9 December 2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	9 December 2022 4:52:32 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 114-1 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev obstructed the lawful activity of the AF of Ukraine and other military formations through creating obstacles in the implementation of the forced alienation of a helicopter that belonged by right of ownership to PJSC “Motor Sich” for the needs of the state under martial law, as well as the execution of the state defense order	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№21

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	9 December 2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	9 December 2022 4:57:07 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 258-3 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: In particular, P.I. Kononenko, being an authorized person on matters of representation of commercial interests of JSC “Motor Sich” on the territory of the RF, with the complicity of V.O. Boguslayev, P.I. Zaruba, O.V. Dziuba, developed and used direct connections with representatives of the MIC of the RF, from December 2017, contrary to existing national prohibitions on movement of cargo across the contact line within Donetsk and Luhansk regions, ensured the supply of blades for aviation engines from the SD “Snizhne Machine-Building Plant of JSC “Motor Sich” (TOT), which was accompanied by payment of taxes in favor of the “DPR”, thereby carrying out organizational and other assistance to the activity of a terrorist organization	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	

Consequence of investigation of criminal offense:

№22

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29 December 2022
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	independent detection by investigator, inquirer (authorized person of another unit) of criminal offense, incl. during pre-trial investigation
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29 December 2022 2:20:24 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 209 Part 3
Brief statement of circumstances that may indicate commission of criminal offense: V.O. Boguslayev by prior conspiracy with O.V. Boguslayev, Yu.V. Kunaiev, P.I. Kononenko, with his son - A.P. Kononenko, in the period of time from 2014 to 2022 acquire, possess, use and dispose of property regarding which factual circumstances indicate its receipt by criminal means (in particular providing organizational and other assistance to the activity of a terrorist organization through providing funds to legal entities whose property is indirectly under the control of terrorists, as well as to legal entities and natural persons who act on behalf of or under the instruction of the said persons) including through conducting financial operations, performing transactions with such property, or transfer, change of form (transformation) of such property	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№23

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	27 February 2023
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	6 March 2023 2:37:46 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: By an unidentified official of PJSC “Motor Sich” from 2020 to 2022 intentional unlawful acts were committed regarding the export of a set of aviation units for engines VK-2500-03 without corresponding permits of the State Service of Export Control of Ukraine, that is, violation of the established procedure for implementation of international transfers of goods subject to state export control.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	

Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

№24

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	20 March 2023
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	28 March 2023 12:46:43 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: In 2018, official of JSC “Motor Sich” O.V. Dziuba exported to the United Arab Emirates and Serbia 6 aviation engines TV3-117VMA series 02, without corresponding permits of the State Service of Export Control of Ukraine, thereby violating the established procedure for implementation of international transfers of goods subject to state export control.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№25

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	11 October 2023
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	19 October 2023 11:06:56 AM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 333 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: On 3 August 2022, officials of JSC “Motor Sich”, without obtaining from State Export Control the corresponding permit, carried out to the address of the foreign company “VIH Helicopters LTD” (Canada) export (under the customs regime EK 11 AA – re-export, namely: return export of goods that were previously imported into the customs territory of Ukraine) of two aviation engines TV3-117VMA series 02, and on 28 July 2021 and 17 October 2022 their medium and capital repairs, respectively, thereby violating the established procedure for implementation of international transfers of goods subject to state export control.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	

Consequence of investigation of criminal offense:

№26

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	29 April 2024
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	20 May 2024 11:14:06 AM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 111-2 Part 1
Brief statement of circumstances that may indicate commission of criminal offense: Unidentified officials of JSC “MOTOR SICH”, bypassing the legislation of Ukraine, through disguising their actions under the guise of deliveries to the address of “IMACO COMMERCE LIMITED PARTNERSHIP”, “ASSTRA POLSKA sp. z.o.o”, JSC “Uzbekneftegaz”, carried out the supply of material resources – gas turbine drives AI-336-2-8 to representatives of the aggressor state – the russian federation to ensure the needs of its gas extraction industry, which is actually one of the main sources of financing Russia’s military aggression against Ukraine.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

№27

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	13 May 2024
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	JSC Motor Sich (Code 14307794)
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	30 May 2024 5:10:36 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 219 (in force until 1 July 2020)
Brief statement of circumstances that may indicate commission of criminal offense: Unidentified officials of JSC “Motor Sich”, who acted as a group of persons by prior conspiracy with persons who exercised effective control over the enterprise – V.O. Boguslayev, O.V. Boguslayev, as well as persons who without permission of the AMCU performed actions aimed at taking possession of the production assets of the enterprise in the interests of Beijing Skyrizon Aviatin Indastry Investments Co. Ltd and acted indirectly through offshore companies – Wang Jing, Du Tao, Li Fengjiu, Xu Changshun, Ren Jinglin, Liu Yangning, performed actions aimed at bringing the enterprise to bankruptcy, in particular through the formation of debt in the amount of over USD 100 million, as well as siphoning off in favor of V.O. Boguslayev, O.V. Boguslayev assets of the enterprise, in particular those received under a loan, thereby causing the enterprise property damage in particularly large amounts.	

Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:
Consequence of investigation of criminal offense:

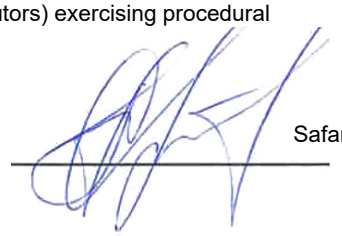
№28

Date of receipt of application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	20 May 2024
Full name of victim, applicant (name of legal entity and USREOU code of legal entities, individual entrepreneurs and public associations):	materials of law enforcement, judicial and regulatory state bodies on detecting facts of commission or preparation for commission of criminal offenses
Date and time of entry into the URPI of information on application, notification of commission of criminal offense or detection from another source of circumstances that may indicate commission of criminal offense:	30 May 2024 5:36:30 PM
Legal qualification of criminal offense:	(CC of Ukraine 2001) Art. 28 Part 2; Art. 191 Part 5
Brief statement of circumstances that may indicate commission of criminal offense: Unidentified officials of JSC “Motor Sich”, who acted as a group of persons by prior conspiracy with persons who exercised effective control over the enterprise – V.O. Boguslayev, O.V. Boguslayev, through abuse of official position committed in their interests embezzlement of property of the enterprise, thereby causing it property damage in particularly large amounts.	
Full name, date of birth of person notified of suspicion, consequences of investigation regarding person and information on conduct of special pre-trial investigation regarding them:	
Name and USREOU code of legal entity regarding which proceedings are conducted. Full name of legal entity representative:	
Consequence of investigation of criminal offense:	

Pre-trial investigation body: Main Investigation Directorate of the SB of Ukraine

Full name of investigator (investigators)/inquirer exercising pre-trial investigation: Romashkin D.S., Kulachek A.A., Miroshnyk O.V., Hryhorieva A.A., Dryvynskyi A.P., Dunai D.O., Kravchenko O.L., Khrystoforov V.F., Khliebnikova O.M., Vorona V.O.

Full name of prosecutor (prosecutors) exercising procedural guidance: Safarian O.E., Chorna O.M., Trush S.A., Stotskyi M.V., Kaspruk D.I., Bukalo I.S., Tomchai R.V., Dolbeshchenkov D.O., Kisilevych I.P., Zhyla O.B., Yehzhov R.D., Harasym S.Y., Zhovnerchuk Ya.V.

Registrar's signature  Safarian O.E.

Department prosecutor

19 March 2025

Prosecution Service of Ukraine
OFFICE OF THE PROSECUTOR GENERAL
13/15 Riznytska St., Kyiv, 01011 fax: (044) 280-26-03
e-mail: office@gp.gov.ua, web: www.gp.gov.ua
USREOU Code 00034051

_____ No. _____ To No. _____ dated _____

RESOLUTION
on changing the group of prosecutors

City of Kyiv «07» February 2025

First Deputy Prosecutor General Oleksiy Mykolayovych Khomenko, having examined the materials of criminal proceedings No. 22017000000000272,

ESTABLISHED:

The Main Investigation Directorate of the Security Service of Ukraine is conducting a pre-trial investigation in criminal proceedings No. 22017000000000272 dated 6 July 2017 under Part 1 of Art. 14, Art. 113, Part 2 of Art. 209, Part 3 of Art. 212, Part 1 of Art. 111, Part 3 of Art. 15, Part 4 of Art. 190, Part 4 of Art. 358, Part 2 of Art. 364, Part 1 of Art. 15, Art. 113, Part 1 of Art. 333, Part 2 of Art. 233, Part 2 of Art. 111, Part 4 of Art. 111-1, Part 2 of Art. 28, Part 4 of Art. 111-1, Part 2 of Art. 28, Part 1 of Art. 111-2, Part 1 of Art. 114-1, Part 2 of Art. 28, Part 1 of Art. 258-3, Part 3 of Art. 209, Part 1 of Art. 333, Part 2 of Art. 28, Art. 219, Part 2 of Art. 28, Part 5 of Art. 191 of the CC of Ukraine.

In connection with personnel changes in the Office of the Prosecutor General, the impossibility of the exercise of powers by prosecutors in the previous composition of the group, for the purpose of ensuring an effective pre-trial investigation, supervision thereof in the form of procedural guidance, it is necessary to change the group of prosecutors.

In view of the above, guided by Arts. 37, 110 of the CPC of Ukraine,

RESOLVED:

1. To change the group of prosecutors who will exercise supervision over the observance of laws in the form of procedural guidance of the pre-trial investigation in criminal proceedings No. 22017000000000272, designating it composed of:

- Head of the Directorate for Organization and Procedural Guidance of Pre-Trial Investigation and Support of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies of the Office of the Prosecutor General **Kisilevych I.P.**, Deputy Head of this Directorate **Zhyla O.B.**, Head of the First Division of this Directorate **Dolbeshchenkov D.O.**, Deputy Head of this Division **Yegzhov R.D.**, prosecutors of this Division **Safaryan O.E.**, **Trush S.A.**, **Kaspruk D.I.**, **Bukalo I.S.**, **Chorna O.M.**, **Tomchay R.V.**, **Zhovnerchuk Ya.V.**, **Harasym S.Y.**;

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- prosecutor of the Second Division of the Directorate for Investment Protection and Introduction of Specialization of Prosecutors of the Department of Criminal Policy and Investment Protection of the Office of the Prosecutor General **Stotskyi M.V.**

2. As Senior of the group of prosecutors in criminal proceedings No. 22017000000000272 to designate the prosecutor of the First Division of the Directorate for Organization and Procedural Guidance of Pre-Trial Investigation and Support of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies of the Office of the Prosecutor General **Safaryan O.E.**, who is entrusted with directing the actions of other prosecutors.

3. To enter the relevant information into the URPI.

The resolution is not subject to appeal during the pre-trial investigation, however, a complaint against it pursuant to Part 2 of Art. 303 of the CPC of Ukraine may be subject to examination during preparatory proceedings in court in accordance with the rules of Arts. 314 – 316 of this Code.

First Deputy Prosecutor General **Oleksiy KHOMENKO**

Out. No. 20260529/1

To the Prosecutors in Criminal Proceeding No. 22017000000000272 –
Prosecutor of the Prosecutor General's Office
Oleksandr Safaryan
13/15 Riznytska St., Kyiv, 01011

Defense Counsel: **Attorney Vladyslav Miftakhutdinov**
Entrance 13, 22 Rybalska St., Kyiv, 01011
Tel.: 097 327 02 69
E-mail: v.miftakhutdinov@vbpartners.ua

In the interests of: **Oleksandr Vyacheslavovych Boguslayev**

Criminal Proceeding
No. 22017000000000272

MOTION
on determination of investigative jurisdiction of criminal proceeding
No. 22017000000000272

(pursuant to Article 220, Part 2 of Article 218 of the CPC of Ukraine)

I, attorney Vladyslav Miftakhutdinov, provide legal assistance to Oleksandr Vyacheslavovych Boguslayev (hereinafter – the Client; powers – Annexes 1, 2).

On 25 April 2025, regarding my Client, a Notice of Suspicion was drawn up within criminal proceeding No. 22017000000000272 dated 6 July 2017 (hereinafter – the Criminal Proceeding; Annex 3).

The pre-trial investigation within the Criminal Proceeding is carried out by the Main Investigation Directorate of the Security Service of Ukraine. Procedural supervision is exercised by prosecutors of the Prosecutor General's Office.

Since 7 February 2025, You have been designated senior prosecutor of the group of prosecutors within the Criminal Proceeding (Annex 4).

The defense has grounds for filing a motion to change the investigative jurisdiction of the Criminal Proceeding, since:

(1) The Criminal Proceeding, pursuant to the provisions of the CPC, falls under the exclusive subject-matter investigative jurisdiction of NABU;

(2) The procedural duty to determine proper investigative jurisdiction of the Criminal Proceeding is imposed on the prosecutor;

(3) The prosecutor must supervise compliance with the requirements of legislation within the criminal proceeding;

(4) Proper investigative jurisdiction of the proceeding is a guarantee of observance of the Client's right to due legal process provided for by Article 2 of the CPC.

The above is substantiated by the following.

1. Regarding the exclusive investigative jurisdiction of the Criminal Proceeding by NABU

Pre-trial investigation of the Criminal Proceeding is carried out by the Main Investigation Directorate of the Security Service of Ukraine.

In the indicated Criminal Proceeding, investigators of the Main Investigation Directorate of the Security Service of Ukraine drew up Notices of Suspicion regarding V.O. Boguslayev and O.V. Boguslayev.

On 28 April 2025, V.O. Boguslayev was notified of suspicion of committing criminal offenses provided for by Part 5 of Article 191, Part 3 of Article 209 of the CC.

On 25 April 2025, in the Criminal Proceeding, a Suspicion was drawn up regarding O.V. Boguslayev concerning a crime provided for by Part 3 of Article 209 of the CC.

According to the investigation's version:

(1) V.O. Boguslayev during 1994–2015, abusing his official position, allegedly unlawfully took possession of shares of JSC "Motor Sich" at an undervalued price as a result of failure to index the value of property during the privatization of the SE "Motor Sich".

(2) Subsequently, V.O. Boguslayev and O.V. Boguslayev allegedly, starting from 2015, legalized criminal proceeds, namely sold shares of JSC "Motor Sich" (which were acquired by criminal means) to representatives of the PRC.

At the same time, the crimes incriminated by the investigation against V.O. Boguslayev were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – 25 May 2006–29 August 2019 (Annexes 5–8).

Thus, according to the investigation's version, the misappropriation of property in especially large amounts (Part 5 of Article 191 of the CC) and the legalization of property in especially large amounts (Part 3 of Article 209 of the CC) were committed by a person who at that time was a People's Deputy of Ukraine.

This, in turn, indicates the investigative jurisdiction of such proceeding by NABU.

Thus, pursuant to paragraph 1 of Part 5 of Article 216 of the CPC of Ukraine, NABU detectives conduct pre-trial investigation of criminal offenses provided for, in particular, by **Articles 191, 209** of the CC of Ukraine, if the criminal offense is committed by a **People's Deputy of Ukraine.**

We note that the CPC of Ukraine **does not establish a requirement** that the special status of the alleged subject of the crime extend to the entire period of investigation of the proceeding.

That is, during the period of investigation, the person may not possess the corresponding status. For NABU's investigative jurisdiction, what is decisive is that the person possesses such special status at the moment of committing the alleged offense.

In addition, the CPC of Ukraine does not establish that the alleged commission of the crime **must be connected with the person having such special status** (using it).

That is, the CPC of Ukraine does not contain any indications that:

(1) At the moment of notice of suspicion the person must continue to hold the status of a People's Deputy of Ukraine;

(2) The crime must be committed using the status, powers of a People's Deputy of Ukraine.

At the same time, in the notice of suspicion to V.O. Boguslayev it is directly indicated that the legalization of property in especially large amounts (Part 3 of Article 209 of the CC) was committed by V.O. Boguslayev using his deputy status (page 23 of the Notice of Suspicion).

In addition, pursuant to paragraph 2 of Part 5 of Article 216 of the CPC of Ukraine, NABU detectives conduct pre-trial investigation of criminal offenses provided for, in particular, by Article **191** of the CC of Ukraine, which caused damage in an amount of more than five thousand sizes of the subsistence minimum established by law (as of today, UAH 16,640,000).

According to the investigation's version, the amount of damage caused by the Criminal offense provided for by Article 191 of the CC of Ukraine, as of 17 June 1994, amounts to 93,528,150 UAH [Note: "грн." in original], and as of 2021 taking into account consumer price indices (inflation) amounts to UAH 18.05 billion (page 12 of the Notice of Suspicion).

The indicated amount of damage significantly exceeds the amount of damage specified in paragraph 2 of Part 1 of Article 216 of the CPC of Ukraine, minimally required for the investigative jurisdiction of the criminal proceeding by NABU.

Therefore, the Criminal Proceeding is subject to the investigative jurisdiction of NABU, since the criminal offenses incriminated against V.O. Boguslayev – Part 5 of Article 191, Part 3 of Article 209 of the CC, were allegedly committed by him during the period of his tenure as a People's Deputy of Ukraine, and the damage caused by them significantly exceeds the amount specified in paragraph 2 of Part 5 of Article 216 of the CPC of Ukraine.

Thus, in the Criminal Proceeding the conditions of investigative jurisdiction of the proceeding by NABU are observed:

(1) regarding the subject of the criminal offense (paragraph 1 of Part 5 of Article 216 of the CPC of Ukraine).

(2) regarding the amount of damage caused by the criminal offense provided for by Article 191 of the CC of Ukraine (paragraph 2 of Part 5 of Article 216 of the CPC of Ukraine).

In addition, such investigative jurisdiction of NABU in this case is exclusive (i.e. such that precludes investigation of the Proceeding by other bodies) in view of the following:

(1) pursuant to Part 5 of Article 36 of the CPC of Ukraine, **it is prohibited to entrust the conduct of pre-trial investigation of a criminal offense assigned to the investigative jurisdiction of NABU to another pre-trial investigation body**, except in cases where objective circumstances exist that make the functioning of NABU or its conduct of pre-trial investigation impossible under martial law.

In this case, circumstances making the functioning of NABU impossible are absent.

(2) Part 5 of Article 36 of the CPC of Ukraine establishes that **it is prohibited for pre-trial investigation of a criminal offense committed by a People's Deputy of Ukraine to be conducted by other pre-trial investigation bodies, except for NABU** and the central apparatus of the SBI in accordance with their investigative jurisdiction.

Considering the stated, **the Criminal Proceeding falls under the exclusive investigative jurisdiction of NABU detectives.**

Thus, an analysis of Part 5 of Article 36, Parts 2, 5 of Article 216 of the CPC of Ukraine indicates the absence of authority in the bodies of the Security Service of Ukraine to conduct pre-trial investigation in the Criminal Proceeding.

At the same time, according to Part 2 of Article 19 of the Constitution of Ukraine, state power bodies and their officials are obligated to act only on the basis, within the powers and in the manner provided for by the Constitution and laws of Ukraine.

Thus, NABU is the sole body authorized to conduct pre-trial investigation in the Criminal Proceeding.

2. Regarding the prosecutor's duty to determine another investigative jurisdiction of the Criminal Proceeding.

Part 2 of Article 218 of the CPC of Ukraine regulates the procedure for actions of an investigator/prosecutor upon discovering that a criminal proceeding does not fall within the investigative jurisdiction of the investigation body.

In particular, the specified provision **establishes the duty** of the prosecution **to respond properly** to identified facts and circumstances that indicate a violation of investigative jurisdiction within a criminal proceeding.

Thus, according to paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine, the prosecutor, in the event of independent establishment of circumstances indicating the necessity to determine another investigative jurisdiction, **within ten days from the day such circumstances are established, is obligated to adopt a ruling on determining investigative jurisdiction.**

Therefore, the specified provision establishes:

(1) the prosecutor's duty to determine another investigative jurisdiction;

(2) the ground for determining another investigative jurisdiction;

(3) the time limit within which the prosecutor must make a decision on changing the investigative jurisdiction of the proceeding.

We note that the specified provision establishes precisely the duty of the prosecutor, in case of violation of investigative jurisdiction, to take actions aimed at determining proper investigative jurisdiction.

Within the Criminal Proceeding, the prosecutor is obligated to comply with the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine another investigative jurisdiction of the Criminal Proceeding within 10 days, as:

(1) The Criminal Proceeding constitutes the exclusive investigative jurisdiction of NABU (in connection with the circumstances stated in item 1 of the Motion);

(2) The Criminal Proceeding cannot be subject to the investigative jurisdiction of the Main Investigation Directorate of the Security Service of Ukraine.

On 7 February 2025, You were included in the group of prosecutors and designated senior of the group of prosecutors.

The circumstances necessitating the change of investigative jurisdiction of the Proceeding arose on 25 April 2025 – at the moment of notice of suspicion under Part 5 of Article 191 of the CC to a special subject.

Therefore, it was from this date that such 10-day period for determining the investigative jurisdiction of the Criminal Proceeding to NABU began.

Pursuant to Part 1 of Article 220 of the CPC of Ukraine, a motion of the defense for performance of any procedural actions, the prosecutor is obligated to consider within a period of no more than three days from the moment of submission and satisfy them in the presence of appropriate grounds.

Thus, this Motion contains demands for the conduct of procedural actions (determination of investigative jurisdiction of the Criminal Proceeding) and must be considered by the prosecutor in accordance with the requirements of Article 220 of the CPC of Ukraine.

Considering the stated, guided by Articles 8, 9, 36, 216, 218, 220 of the CPC of Ukraine, -

REQUEST:

1. To comply with the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine the investigative jurisdiction of Criminal Proceeding No. 22017000000000272 dated 6 July 2017 to the National Anti-Corruption Bureau of Ukraine, as the body to which it is subject to investigative jurisdiction pursuant to paragraphs 1, 2 of Part 5 of Article 216 of the CPC of Ukraine.
2. To notify about the results of consideration of the Motion attorney Vladyslav Miftakhutdinov at the address: Entrance 13, 22 Rybalska St., Kyiv, 01011, and to the e-mail address: v.miftakhutdinov@vbpartners.ua.

Annexes:

1. Certified copy of the Certificate of the right to practice law.
2. Certified copy of the Order for provision of legal assistance.
3. Certified copy of the Extract from the ERDR.
4. Certified copy of the Resolution of the First Deputy Prosecutor General O.M. Khomenko on designating the group of prosecutors dated 7 February 2025.
5. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 25 May 2006 to 23 November 2007 (V convocation).
6. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 23 November 2007 to 12 December 2012 (VI convocation).
7. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 12 December 2012 to 27 November 2014 (VII convocation).
8. Printout from the official website of the Verkhovna Rada of Ukraine regarding V.O. Boguslayev holding the status of a People's Deputy of Ukraine from 27 November 2014 to 29 August 2019 (VIII convocation).

29 May 2026

Defense Counsel **Vladyslav MIFTAKHUTDINOV**

Prosecution Service of Ukraine

OFFICE OF THE PROSECUTOR GENERAL

13/15 Riznytska St., Kyiv, 01011 fax: (044) 280-26-03
e-mail: office@gp.gov.ua, web: www.gp.gov.ua
USREOU Code 00034051

_____ No. _____ To No. _____ dated _____

RULING
on refusal to satisfy motion

City of Kyiv «03» June 2026

Prosecutor of the First Division of the Department for Organization and Procedural Guidance of Pre-Trial Investigation and Maintenance of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies of the Office of the Prosecutor General Safaryan O.E., having examined the materials of criminal proceeding No. 22017000000000272 dated 6 July 2017,

ESTABLISHED:

The Office of the Prosecutor General received a motion dated 29 May 2026 No. 20260529/1 of attorney Vladyslav Miftakhutdinov in the interests of Oleksandr Boguslayev in criminal proceeding No. 22017000000000272 on determination by the prosecutor of the investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

In the course of its consideration, it was established that investigators of the Main Investigation Directorate of the Security Service of Ukraine on 6 July 2017 initiated pre-trial investigation in criminal proceeding No. 22017000000000272 based on indications of a crime provided for by Article 113 of the CC of Ukraine, assigned to the investigative jurisdiction of investigators of security bodies.

During the investigation, investigators of security bodies revealed a series of other crimes committed both by officials of JSC "Motor-Sich" and by other persons, and prosecutors made decisions on consolidation under twenty-seven episodes of criminal activity initiated under various parts of Articles 111, 111², 113, 114¹, 190, 191, 209, 212, 233, 258³, 219, 333, 358, 364 of the CC of Ukraine.

Following the results of the investigation of these criminal offenses from 2021 to 2024, accusations were brought against Volodymyr Pryadko under Article 367 of the CC of Ukraine, Petro Zaruba under Article 258³ of the CC of Ukraine, Petro Kononenko under Article 258³ of the CC of Ukraine, Vyacheslav Boguslayev under Articles 111¹, 111², 114¹, 258³ of the CC of Ukraine, and Oleh Dzyuba under Articles 111¹, 111², 258³ of the CC of Ukraine, with subsequent severance of materials of pre-trial investigation regarding these persons and adoption of final decisions on referral to court.

By investigators of the Main Investigation Directorate of the Security Service of Ukraine, from 24 January 2024 pre-trial investigation of the specified criminal proceeding has been carried out as part of a joint investigation team (JIT) with the French Republic and the Principality of Monaco regarding facts of legalization on the territory of the European Union of USD 650 million obtained by Oleksandr Boguslayev as a result of the sale of shares of JSC "Motor Sich" unlawfully acquired by Vyacheslav Boguslayev.

On the basis of evidence obtained by the joint investigation team, Vyacheslav Boguslayev on 28 April 2025 was notified of suspicion of misappropriation of shares of JSC "Motor Sich" in especially large amounts (Part 5 of Article 191 of the CC of Ukraine) with subsequent legalization (laundering) of proceeds from illegal

sale of these shares to PRC citizens by prior conspiracy with his son Oleksandr Boguslayev (Part 3 of Article 209 of the CC of Ukraine), who was notified of suspicion under Part 3 of Article 209 of the CC of Ukraine on the territory of the Principality of Monaco by JIT members on 30 April 2025.

The criminal offenses provided for by Part 5 of Article 191 of the CC of Ukraine and Part 3 of Article 209 of the CC of Ukraine were detected specifically during the investigation by investigators of security bodies of a series of criminal offenses under their investigative jurisdiction in criminal proceeding No. 22017000000000272.

In addition, in this very criminal proceeding, the Prosecutor General on 11 July 2019 had already made a decision to entrust the conduct of pre-trial investigation to investigators of the Main Investigation Directorate of the Security Service of Ukraine on the basis of Part 5 of Article 36 of the CPC of Ukraine due to its inefficiency.

Currently, pre-trial investigation is carried out not only regarding Vyacheslav Boguslayev and Oleksandr Boguslayev under Articles 191 and 209 of the CC of Ukraine, but also regarding facts of commission of crimes provided for by various parts of Articles 111, 111^{1}, 111^{2}, 113, 114^{1}, 190, 191, 209, 212, 219, 233, 258^{3}, 333, 358, 364 of the CC of Ukraine.

Vyacheslav Boguslayev, at the time accusations were brought against him under Articles 111^{1}, 111^{2}, 114^{1}, 258^{3} of the CC of Ukraine and notice of suspicion under Articles 191, 209 of the CC of Ukraine, did not have the status of a People's Deputy of Ukraine.

The completion of the commission of the criminal offense incriminated against Vyacheslav Boguslayev provided for by Article 191 of the CC of Ukraine, as well as the commission of the criminal offense provided for by Article 209 of the CC of Ukraine, occurred after JSC "Motor Sich" completely left state ownership.

Therefore, a decision to entrust the conduct of pre-trial investigation in this criminal proceeding (which is taken taking into account the provisions of the CPC of Ukraine on investigative jurisdiction) has already been made, and grounds for determining another investigative jurisdiction have not been established.

Also, the Acting Prosecutor General on 30 September 2025 adopted a ruling on resolving the dispute over investigative jurisdiction in this criminal proceeding, which was determined to investigators of security bodies – the Main Investigation Directorate of the Security Service of Ukraine.

At the same time, the attorney in the motion requests to determine investigative jurisdiction in the criminal proceeding. Such a decision is taken in the form of a ruling and does not pertain to investigative or procedural actions, the right to petition for the conduct of which is granted to the defense pursuant to the provisions of Article 220 of the CPC of Ukraine.

On the basis of the above, guided by the requirements of Articles 36, 110, 220 of the CPC of Ukraine,

RULED:

1. To refuse attorney Vladyslav Miftakhutdinov, who acts in the interests of suspect Oleksandr Boguslayev in criminal proceeding No. 22017000000000272, in the satisfaction of the motion dated 29 May 2026 No. 20260529/1 on determination of the investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

2. To send a copy of the ruling to attorney Vladyslav Miftakhutdinov.

The ruling may be appealed during pre-trial investigation to an investigating judge in accordance with the procedure provided for by Articles 303–306 of the CPC of Ukraine, within ten days from the day of receipt by the person of a copy of the ruling.

Prosecutor of the First Division of the Department for Organization and Procedural Guidance of Pre-Trial Investigation and Maintenance of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies



Oleksandr SAFARYAN

RADA VERKHOVNA RADA OF UKRAINE
Composition and structure

Previous version

People's Deputy of Ukraine (V convocation)

Boguslayev Viacheslav Oleksandrovych



FROM **25 MAY 2006** TO **23 NOVEMBER 2007**

Multi-mandate nationwide electoral district,
Party of Regions *(No. in the list - **5**)*

Committee: Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Faction or group: Faction of the Party of Regions in the Verkhovna Rada of Ukraine

Positions (during convocation)

- Head of the Subcommittee on Legislative Support of State Defense, Defense-Industrial Complex, Military and Military-Technical Cooperation of the Committee of the Verkhovna Rada of Ukraine on National Security and Defense
- Member of the Parliamentary Faction of the Party of Regions in the Verkhovna Rada of Ukraine
- Member of the group on inter-parliamentary relations with the People's Democratic Republic of Algeria
- Member of the group on inter-parliamentary relations with the Arab Republic of Egypt
- Member of the group on inter-parliamentary relations with the Great Socialist People's Libyan Arab Jamahiriya
- Member of the group on inter-parliamentary relations with the State of Israel
- Member of the group on inter-parliamentary relations with the People's Republic of China
- Member of the group on inter-parliamentary relations with the United Mexican States
- Member of the group on inter-parliamentary relations with the United Arab Emirates
- Member of the group on inter-parliamentary relations with the Republic of South Africa
- Member of the group on inter-parliamentary relations with the Republic of Belarus
- Member of the group on inter-parliamentary relations with the Republic of India
- Member of the group on inter-parliamentary relations with the Republic of Iraq
- Member of the group on inter-parliamentary relations with the Republic of Iran
- Member of the group on inter-parliamentary relations with the Republic of Lebanon
- Member of the group on inter-parliamentary relations with the Russian Federation
- Member of the group on inter-parliamentary relations with Romania
- Member of the group on inter-parliamentary relations with the Syrian Arab Republic
- Member of the group on inter-parliamentary relations with the Socialist Republic of Vietnam
- Member of the group on inter-parliamentary relations with the Republic of Turkey
- Member of the group on inter-parliamentary relations with the Czech Republic

All positions during convocation

Personal information (at the time of election)

Date of birth	28 October 1938
Education	Higher
Position (occupation), place of employment	Open Joint-Stock Company Motor Sich, Chairman of the Board
Party affiliation (at the time of elections)	Party of Regions
Resides in	Sonyachne-2 village, Zaporizhzhia district, Zaporizhzhia region
New deputy (not previously elected)	✔ YES
Information at the time of election	In detail ▲

Activity

PREVIOUS VERSION

Voting

Registration

Transitions

Positions

Software and technical support – Computerized Systems Directorate

© Verkhovna Rada of Ukraine 1994-2025

RADA VERKHOVNA RADA OF UKRAINE
Composition and structure

Previous version

People's Deputy of Ukraine (VI convocation)

Boguslayev Viacheslav Oleksandrovych



FROM **23 NOVEMBER 2007** TO **12 DECEMBER 2012**

Multi-mandate nationwide electoral district,
Party of Regions *(No. in the list - **11**)*

Committee: Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Faction or group: Faction of the Party of Regions in the Verkhovna Rada of Ukraine

Positions (during convocation)

- Deputy Head of the Committee of the Verkhovna Rada of Ukraine on National Security and Defense
- Member of the Parliamentary Faction of the Party of Regions in the Verkhovna Rada of Ukraine
- Member of the group on inter-parliamentary relations with the Democratic Socialist Republic of Sri Lanka
- Member of the group on inter-parliamentary relations with the People's Republic of China
- Member of the group on inter-parliamentary relations with the United Arab Emirates
- Member of the group on inter-parliamentary relations with the Republic of India
- Member of the group on inter-parliamentary relations with the Republic of Kazakhstan
- Member of the group on inter-parliamentary relations with the Russian Federation
- Member of the group on inter-parliamentary relations with the Federal Republic of Germany

All positions during convocation

Personal information (at the time of election)

Date of birth	28 October 1938
Education	Higher
Position (occupation), place of employment	Verkhovna Rada of Ukraine, People's Deputy of Ukraine V convocation
Party affiliation (at the time of elections)	Party of Regions
Resides in	Sonyachne village, Zaporizhzhia district, Zaporizhzhia region
New deputy (not previously elected)	NO
Deputy of previous convocation	YES (V convocation)
Information at the time of election	In detail

Activity

PREVIOUS VERSION

- Voting
- Registration
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Software and technical support – Computerized Systems Directorate

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RADA VERKHOVNA RADA OF UKRAINE
Composition and structure

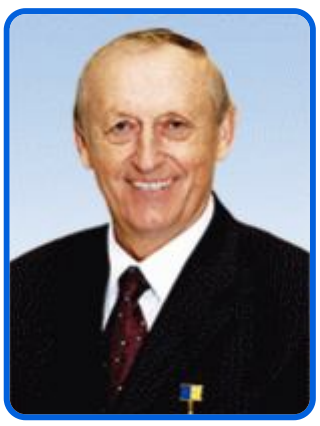
Previous version

Verkhovna Rada of Ukraine / Composition and structure / People's Deputy of Ukraine

People's Deputy of Ukraine (VII convocation)

By convocations | People's Deputies of Ukraine | By electoral districts | List of all deputies

Boguslayev Viacheslav Oleksandrovych



FROM 12 DECEMBER 2012 TO 27 NOVEMBER 2014

Electoral district No. **77**, Zaporizhzhia region

Committee: Committee of the Verkhovna Rada of Ukraine on Industrial and Investment Policy

Faction or group: Faction of the Party of Regions in the Verkhovna Rada of Ukraine

Positions during convocation

Position	Appointment date	Dismissal date
Deputy Head of the Committee of the Verkhovna Rada of Ukraine on Industrial and Investment Policy	25 December 2012	27 November 2014

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RADA VERKHOVNA RADA OF UKRAINE
Composition and structure

Previous version

People's Deputy of Ukraine (VIII convocation)

Boguslayev Viacheslav Oleksandrovych

FROM 27 NOVEMBER 2014 TO 29 AUGUST 2019

Electoral district No. **77**, Zaporizhzhia region

Committee: Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Faction or group: Group "Volya Narodu"



Positions (during convocation)

Member of the Committee of the Verkhovna Rada of Ukraine on National Security and Defense

Member of the "Volya Narodu" Parliamentary Group

All positions during convocation

Personal information (at the time of election)

Date of birth	28 October 1938
Education	Higher
Position (occupation), place of employment	People's Deputy of Ukraine
Party affiliation (at the time of elections)	Non-partisan
Nominating entity	Self-nomination
Resides in	Sonyachne settlement, Zaporizhzhia district, Zaporizhzhia region
New deputy (not previously elected)	NO
Deputy of previous convocation	YES (V, VI, VII convocation)
Information at the time of election	In detail

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SECURITY SERVICE OF UKRAINE
Main Investigation Directorate
33 Volodymyrska St., Kyiv, 01601, fax (044) 279-66-31, tel. (044) 255-84-88
www.ssu.gov.ua e-mail: san@ssu.gov.ua USREOU Code 00034074

NOTICE
of suspicion

City of Kyiv **«25» April 2025**

Senior Investigator for Particularly Important Cases of the 1st Department of the 1st Directorate of Pre-Trial Investigation of the Main Investigation Directorate of the Security Service of Ukraine Lieutenant Colonel of Justice Romashkin Denys Serhiyovych, having established the presence of sufficient evidence to suspect a person of committing a criminal offense, in accordance with Articles 42, 276, 277 and 278 of the CPC of Ukraine, -

NOTIFIED:

Boguslayev Viacheslav Oleksandrovych, citizen of Ukraine and the Russian Federation, who was born on 28 October 1938 in the city of Uralsk of the Republic of Kazakhstan, last registered place of residence at the address: Zaporizhzhia region, Sonyachne settlement, Lisna street, building 2, held in custody in the State Institution «Kyiv Pre-Trial Detention Center» at the address: city of Kyiv, Dehtiarivska street, 13,

that he is suspected of:

- **in the misappropriation of another's property through abuse by an official of their official position, in especially large amounts, that is, of committing a criminal offense provided for by Part 5 of Article 191 of the CC of Ukraine;**
- **in committing, by prior conspiracy by a group of persons, actions for the purpose of concealing and disguising the illegal origin of funds obtained as a result of committing a socially dangerous unlawful act that preceded the legalization (laundering) of proceeds, transfer, changing their form (conversion), as well as the use of funds or other property obtained**

as a result of committing a socially dangerous unlawful act that preceded the legalization (laundering) of proceeds in an especially large amount, that is, of a criminal offense provided for by Part 3 of Article 209 of the CC of Ukraine.

Following the results of the conducted pre-trial investigation, it has been established that by order of the Ministry of Aviation Industry of the USSR dated 17 December 1974 No. 247, the Charter of the Zaporizhzhia Production Association «Motorobudivnyk» named after the 50th Anniversary of the Great October Socialist Revolution was approved, which was approved in a new edition on 15 May 1989 (hereinafter – the Charter), and on 6 February 1991 order No. 298 was issued, by which the Charter of the Zaporizhzhia Production Association «Motorobudivnyk» was approved.

Zaporizhzhia Production Association «Motorobudivnyk» named after the 50th Anniversary of the Great October Socialist Revolution was at least since 1974 in direct subordination to the Ministry of Aviation Industry of the USSR and was created for the production of aviation equipment and other products, with high consumer qualities at minimal costs.

From 1988, V.O. Boguslayev was appointed General Director of the Zaporizhzhia Production Association «Motorobudivnyk», who since 1969 held managerial positions in the mentioned association of plants, and from 1973 to 1988 held the position of Director of the Volochysk Machine-Building Plant included in the structure of the Zaporizhzhia Production Association «Motorobudivnyk».

By Resolution of the Verkhovna Rada of the Ukrainian SSR dated 6 June 1991 No. 1165-XII, it was established that state enterprises and organizations of union subordination located on the territory of the republic pass into the jurisdiction of the Ukrainian SSR, and the Cabinet of Ministers of the Ukrainian SSR was instructed to approve the Regulation on the procedure for the transfer to the jurisdiction of the Ukrainian SSR of enterprises and organizations of union subordination located on the territory of the republic.

By Resolution of the Cabinet of Ministers of the Ukrainian SSR dated 3 July 1991 No. 66, the Regulation on the procedure for the transfer to the jurisdiction of the Ukrainian SSR of state enterprises and organizations of union subordination located on the territory of the republic was approved, according to which the organization of work and formalization of the transfer to the jurisdiction of the Ukrainian SSR of state enterprises and organizations are carried out by the State Property Fund of the Ukrainian SSR.

By Resolution of the Cabinet of Ministers of Ukraine dated 19 August 1991 No. 158 (hereinafter – Resolution of the CMU No. 158), the State Property Fund of Ukraine (hereinafter – SPFU) was actually established, which was entrusted with the execution of tasks on organizing work and formalizing the transfer to the jurisdiction of the Ukrainian SSR of state enterprises and organizations of union subordination, determining the forms and procedure for changing state ownership, supervising the efficiency of use and implementing the corporatization of state property of the UkrSSR. Decisions of the SPFU, adopted within its powers, are binding on ministries and departments of the UkrSSR, and other organizations

The Executive Committee of the Shevchenkivskyi District Council of People's Deputies of Zaporizhzhia Region issued order dated 15 November 1991 No. 393-r regarding the registration of the state enterprise «Motor Sich», as well as its Charter dated 1 November 1991 approved by the Chairman of Derzhoboronprommash.

According to the Charter, «Motor Sich» acted as a state enterprise based on the state property of Ukraine, directly subordinated to Derzhoboronprommash of Ukraine and previously named Zaporizhzhia Production Association «Motorobudivnyk» named after the 50th Anniversary of the Great October Socialist Revolution as part of the Ministry of Aviation Industry of the USSR, with the same subject of activity.

From the beginning of its establishment, V.O. Boguslayev was appointed General Director of the SE «Motor Sich», who at that time had already for more than 22 years held managerial positions in various structural subdivisions, having acquired corresponding influence and opportunities related to his position. The state enterprise operated according to the command-administrative principle of management, one-man management and with strict centralization of the decision-making system regarding the essence of its work. The management of the enterprise is carried out by its head, who independently decides all issues of its activity with the exception of those that are referred by the charter to the competence of the Property Management Body and other governing bodies, etc. He also bears full responsibility for the activity of the enterprise.

After the privatization of the enterprise and the appointment of V.O. Boguslayev in 1994 as head of the newly created joint-stock company, by the general meeting of shareholders on 11 March 1999 he was elected Chairman of the Board – General Director of Open Joint-Stock Company «Motor Sich». By the general meeting of shareholders on 16 March 2006, V.O. Boguslayev was elected Chairman of the Board of Directors of this same enterprise, and already on 28 April 2006 by decision of the Board of Directors he was formally dismissed from the position, since from 25 May 2006 to 29 August 2019 he exercised the powers of a People's Deputy of Ukraine of the 5th–8th convocations, actually continuing to manage the enterprise belonging to him, using thereby the opportunities of his position, since he was Deputy Head of the Committee of the Verkhovna Rada of Ukraine on National Security and Defense, and also a member of the group for inter-parliamentary relations with the Democratic Socialist Republic of Sri Lanka, the Republic of Kazakhstan, the Republic of India, the United Arab Emirates, the People's Republic of China, the Federal Republic of Germany, the Russian Federation.

From 16 October 2019 to 10 February 2023, V.O. Boguslayev – President of Joint-Stock Company «Motor Sich», General Designer for the Creation and Modernization of Helicopter Equipment.

Thus, V.O. Boguslayev had full sole factual control over all activities of Joint-Stock Company «Motor Sich» from 1988 to 2023.

At the same time, from 1988 to 1994 all property of Zaporizhzhia Production Association «Motorobudivnyk» and SE «Motor Sich» created on its basis

was in the direct possession of its head V.O. Boguslayev, who disposed of it on the basis of the Charter and regulatory acts indicated below.

By the Law of Ukraine «On Privatization of Property of State Enterprises» dated 4 March 1992 No. 2163-XII (hereinafter – Law No. 2163-XII), it is provided that state policy in the field of privatization is implemented by the SPFU, privatization bodies of the Republic of Crimea and administrative-territorial units. Privatization is defined as alienation of property that is in nationwide, republican (Republic of Crimea) and municipal ownership, in favor of individuals and non-state legal entities. It is carried out on the basis of the principle of legality and on a paid basis using privatization papers.

The SPFU makes a decision on privatization of an object on the basis of consideration of applications and notifies the applicant and the labor collective of the enterprise being privatized about this. Within a month from the date of adoption of the decision on privatization of the object, the SPFU approves the composition of the commission for privatization of the object and establishes the period for submission of the privatization plan. This period must not exceed two months from the date of approval of the commission composition.

The draft plan, developed by the privatization commission, is submitted for consideration to the regional branches of the SPFU or local privatization bodies, which within 10 days are obligated to consider the submitted drafts, approve the privatization plan and bring it to the notice of interested persons.

For the purpose of implementing the provisions of Law No. 2163-XII regarding policy in the field of privatization, by Resolution of the Verkhovna Rada of Ukraine dated 7 July 1992 No. 2558-XII the Provisional Regulation on the SPFU (hereinafter – Provisional Regulation) was approved, as a state body that implements state policy in the field of privatization of state property, acts as a lessor of property complexes that are nationwide property.

The SPFU has the right, in particular, to conduct inventory of nationwide property that according to the State Privatization Program is subject to privatization, as well as to carry out audit checks of the efficiency of its use.

By the Regulation on Inventory of Property of State Enterprises Being Privatized, as Well as Property of State Enterprises and Organizations Being Leased, approved by Resolution of the Cabinet of Ministers of Ukraine dated 2 March 1993 No. 158 (hereinafter – Regulation No. 158), it is provided that inventory of property of state enterprises being privatized is conducted in accordance with the decision of state privatization bodies.

To conduct the inventory of property of state enterprises being privatized, the state privatization body approves the composition of the inventory commission. The protocol of the inventory commission on the results of the inventory with proposals on regulating inventory differences is approved by the state privatization body or the lessor within a 5-day period.

By the Regulation on Privatization Commissions, approved by Order of the Chairman of the SPFU dated 8 September 1992 No. 371, it is provided that the composition of the commission is approved

by decision of the corresponding privatization body. By this decision, the chairman of the commission is appointed and the deadline for submission of the privatization plan for the object is established.

In execution of the State Program for Privatization of Property of State Enterprises, by Resolution of the Cabinet of Ministers of Ukraine dated 7 December 1992 No. 686, the Procedure for Transformation in the Process of Privatization of State Enterprises into Open Joint-Stock Companies was approved (hereinafter – Procedure No. 686), which provides that the decision on transformation of a state enterprise into an open joint-stock company is adopted by the state privatization body on the basis of the privatization plan of this enterprise within a 10-day period from the date of its approval.

With the aim of applying a unified procedure for formalizing documentation on conducting valuation of the cost of objects of privatization and lease, by Order of the Chairman of the SPFU dated 9 March 1993 No. 117, the Instruction on Conducting Valuation of the Cost of Objects of Privatization and Lease was approved (hereinafter – Instruction No. 117), which provides that upon submission by the privatization commission, the state privatization body issues an order on the establishment of an inventory commission.

Clause 6.2 of the said Instruction established that valuation of the cost of property of a state enterprise as an integral property complex is carried out within a 10-day period from the date of submission of documentation on the results of the inventory. The results of the valuation are reflected in an act of the established form and approved by the corresponding privatization body.

By Directive of the Cabinet of Ministers of Ukraine dated 14 December 1991 No. 399-r (hereinafter – Directive of the CMU No. 399-r), the list of enterprises for which preparatory work on destatization and privatization begins was approved, which included 42 enterprises, including Zaporizhzhia Production Association «Motorobudivnyk», the legal successor of which is SE «Motor Sich».

Clause 1 of Directive of the CMU No. 399-r instructed the Ministry of Ukraine for Destatization of Property and Demonopolization of Production, as well as the SPFU, to begin preparatory work on destatization and privatization of enterprises, associations and organizations according to the annex, intending to carry out, among other things: creation of privatization commissions with the participation of representatives of the Ministry of Ukraine for Destatization of Property and Demonopolization of Production and the State Property Fund of Ukraine, the relevant branch body of state administration, the labor collective and administration, local Councils of People's Deputies, financial bodies; conducting inventory of production and non-production assets of enterprises taking into account the results of the inventory; valuation of the cost of property subject to privatization, using various methodologies: at replacement cost, taking into account depreciation, inflation, potential profitability of enterprises, market prices for their property.

In execution of this same Directive and in connection with receipt from SE «Motor Sich» of an application for privatization, protocol of the conference of the labor collective and information on the main indicators of production and economic activity, by joint order of the SPFU dated 20 March 1992 No. 79 and the Ministry

of Ukraine for Destatization of Property and Demonopolization of Production dated 21 March 1992 No. 21, the Privatization Commission was created, the composition of which included the General Director of SE «Motor Sich» V.O. Boguslayev.

Acting for the purpose of developing a mechanism for privatization of large enterprises of the machine-building industry of Ukraine, on 31 May 1993 V.O. Boguslayev, as General Director of SE «Motor Sich», applied with a corresponding letter No. otyz-10059 to Prime Minister of Ukraine L.D. Kuchma with a request to grant permission to corporatize and privatize SE «Motor Sich» as an experiment.

Having obtained the consent of the Prime Minister of Ukraine in the form of a written resolution on the application, by Order of the SPFU dated 16 June 1993 No. 18-DP, a decision was made to issue permission for privatization of SE «Motor Sich» and create a privatization commission.

After which, the General Director of SE «Motor Sich» V.O. Boguslayev, by a letter on letterhead 017913 without date and number, proposed his candidacy as one of the members of the privatization commission, and on 26 July 1993 by letter No. BY/13006 submitted his own candidacy for inclusion in the composition of the enterprise inventory commission as General Director.

The Regulation on Privatization Commissions, approved by Order of the SPFU dated 8 September 1992 No. 371 (hereinafter – Regulation No. 371), provided for its main tasks in the form of: control over the conduct of inventory of the property of the privatization object; development of the privatization plan of the object and submission thereof for approval to the privatization body; valuation of the cost and determination of the initial price of the privatization object, the size of the statutory fund of the economic company, etc.

At the same time, on 27 August 1993 the Chairman of the SPFU V.V. Pryadko, treating negligently the performance of his official duties, failing to comply with the deadlines established by Order No. 18-DP dated 16 June 1993, signed Order No. 225-PK on the creation of the commission for privatization of SE «Motor Sich», which established the deadline for submission to the Fund for approval of the draft privatization plan of the object – 2 months from the date of signing the order. The said order approved the composition of the commission of eight persons, among whom was the General Director of SE «Motor Sich» V.O. Boguslayev.

Regulation No. 158 formulated the main purpose of inventory, which is to determine the actual presence and condition of the property of the inventory object, verify the actual presence of property against accounting data, settle inventory differences and reflect the results of the inventory in the transfer balance sheet.

According to clause 2.2 of Instruction No. 117, upon submission of the privatization commission, the Fund, as the state privatization body, issues an order of the established form on the creation of an inventory commission. In this order, the deadline is established for submission by the inventory commission to the privatization commission of the results of the inventory: the protocol, inventory records and the transfer balance sheet.

Clause 5.6 of Instruction No. 117 provides that on the basis of the protocol on the general results of the inventory and inventory forms, there is drawn up (in two

copies) a transfer accounting balance sheet, which is signed by the chief accountant and the head of the enterprise.

In 1993, the decline of Ukraine's economy was not less than 14% in annual terms, and prices increased to 10,256%, which meant the onset of a sharp daily increase in the consumer price index (in particular, for August 121.7%, for September 180.3%, for October 166.1%).

For the purpose of overcoming the indicated negative phenomena in the economy and creating favorable conditions for improving the financial condition of enterprises, institutions and organizations of all forms of ownership, the Cabinet of Ministers of Ukraine adopted the resolution «On Conducting Indexation of Fixed Assets in the National Economy of Ukraine» dated 3 August 1993 No. 598 (hereinafter – Resolution No. 598).

In execution of Resolution No. 598, by joint letter of the Ministry of Statistics, the Ministry of Economy, the Ministry of Finance together with the SPFU dated 4 August 1993 No. 07/01-04/62, the Procedure for Indexation of the Book Value of Fixed Assets of Enterprises, Organizations and Institutions in Connection with Price Increases was established (hereinafter – Procedure No. 07/01-04/62).

The said Procedure provided that indexation is carried out annually after the reporting year as of January 1 of the following year, in 1993 as of August 1. Subject to recalculation is the value of existing buildings, structures, transmission devices, machinery and equipment, vehicles, production and household inventory, working and productive livestock, perennial plantings and other types of fixed assets.

Direct work on indexation of the value of fixed assets is carried out by a commission specially created at the enterprise under the chairmanship of its head, who bears responsibility for the timeliness of its conduct, as well as for the completeness and accuracy of determining the results of indexation. The enterprise commission compiles a statement of recalculation of the book value of fixed assets and their depreciation, into which necessary data is entered from analytical accounting registers and on the basis of which records of indexation results are made in accounting.

Changes in the value of fixed assets and depreciation amounts are reflected in inventory cards of fixed asset accounting or in other registers of analytical accounting.

The Chairman of the SPFU V.V. Pryadko, treating negligently his assigned official duties, signed Order dated 30 August 1993 No. 234-IK on the creation of the inventory commission, in which, in violation of Regulation No. 158 and clause 2.3 of Instruction No. 117, having appointed as its chairman the General Director of SE «Motor Sich» V.O. Boguslayev as a representative of the SPFU, who had never been one, without specifying thereby the procedure and deadlines for submission by the inventory commission of the transfer balance sheet for approval, in which information on the financial condition of the enterprise based on the results of the inventory must be reflected.

Treating negligently his assigned official duties, the Chairman of the SPFU V.V. Pryadko (the said person was released from criminal liability provided for by Part

2 of Article 167 of the CC of Ukraine (in the edition of 1960), by statute of limitations, by ruling of the Pecherskyi District Court of the city of Kyiv dated 30 April 2021) adopted an unlawful decision, by which he actually created conditions and opportunities for unimpeded preparation and subsequent provision of inaccurate results of the inventory of property of SE «Motor Sich» without its actual conduct and without application of indexation.

By the said order of V.V. Pryadko, the inventory commission was instructed to conduct a complete inventory in accordance with Resolution of the CMU dated 3 August 1993 No. 598 and submit to the SPFU for approval the protocol on the results of the inventory (inventory forms) as of 1 September 1993.

Subsequently, at a time undetermined by the pre-trial investigation, but not later than 30 August 1993, under circumstances not precisely established by the pre-trial investigation, V.O. Boguslayev, realizing the opportunities artificially created by the Chairman of the SPFU V.V. Pryadko for privatization of SE «Motor Sich» at undervalued prices, used such circumstances in his personal interests aimed at embezzlement of state property, influencing directly, as chairman of the inventory commission and member of the privatization commission, the progress and results of privatization of the state enterprise fully controlled by him.

To implement his intent on embezzlement of state property in especially large amounts, V.O. Boguslayev organized the undervaluation of the size of the statutory fund of the privatization object as a result of failure to conduct mandatory indexation of the book value of fixed assets, non-inclusion of the indexation amount in the valuation of the property value, exclusion of the value of property subject to privatization, using thereby the status of chairman of the privatization commission and his administrative influence as the sole head of the state enterprise being privatized.

In execution of the above-mentioned order of V.V. Pryadko, by persons not precisely established by the pre-trial investigation under the leadership of V.O. Boguslayev, who acted according to an already formed criminal intent aimed at embezzlement of state property, under circumstances not ascertained by the pre-trial investigation in the period from 30 August 1993 to 5 November 1993, inventory materials of SE «Motor Sich» were prepared, which consisted of inventory list No. 1 of fixed assets, inventory list No. 2 of inventory values (inventories and expenses), inventory list No. 3 of inventory values (finished products), a consolidated comparative statement of the results of inventory of property for the enterprise «Motor Sich» and the enterprise balance sheet as of 1 August 1993, and not as of 1 September 1993, which, taking into account the rapid growth of the consumer price index, enabled privatization to be carried out at prices that already significantly did not correspond to market prices and were substantially understated.

Inventory list No. 1 of fixed assets, inventory list No. 2 of inventory values (inventories and expenses) and inventory list No. 3 of inventory values (finished products), compiled as of 1 August 1993 in inconsistency with the standard forms of primary accounting documentation on inventory approved by Resolution of the USSR State Committee on Statistics dated 28 December 1989 No. 241, as provided for by clause 13 of Regulation No. 158 and clause 5.2 of Instruction No. 117.

In particular, in inventory list No. 1 of fixed assets, compiled according to form Inv-1, data regarding name and brief characteristics, year of manufacture (construction), number (inventory, factory, passport), quantity (actual and according to accounting data), total for the list of total quantity (item numbers), total quantity of units, actually by amount are missing. Also, signatures of persons responsible for safekeeping of fixed assets, signature of the person who verified data in the list, decoding of positions and full names of commission members are missing.

In inventory list No. 2 of inventory values (inventories and expenses) and inventory list No. 3 of inventory values (finished products), which were compiled according to form Inv-3, data regarding name of inventory values (type, sort, group and other), cipher, unit of measurement, price, quantity (actual and according to accounting data), total for the list of quantity of units actually are missing. Signatures of persons responsible for safekeeping of fixed assets, signature of the person who verified data in the list, decoding of positions and full names of commission members are missing.

At the same time, in inventory list No. 1 of fixed assets it is indicated that the inventory was conducted on the basis of order dated 27 July 1993 No. 304, as of 1 August 1993, started on 1 August 1993 and completed on 20 August 1993.

In inventory list No. 2 of inventory values (inventories and expenses) it is indicated that the inventory was conducted on the basis of order dated 27 July 1993 No. 304, as of 1 August 1993, started on 1 August 1993 and completed on 17 August 1993.

In inventory list No. 3 of inventory values (finished products) it is indicated that the inventory was conducted on the basis of order dated 27 July 1993 No. 304, as of 1 August 1993, started on 30 July 1993 and completed on 1 August 1993.

In the consolidated comparative statement of the results of inventory of property of SE «Motor Sich», it is stated about the counting of balances and the conduct of inventory of actual availability of fixed and circulating assets in one day on 1 August 1993 on the basis of order of SE «Motor Sich» dated 27 July 1993 No. 304 and order dated 30 August 1993 No. 234-IK, which contradicts inventory lists No. 1 and No. 2, as well as the content of order itself dated 30 August 1993 No. 234-IK and indicates its compilation and signing by the inventory commission earlier than the conduct of inventory of property was completed.

Thus, inventory list No. 1 of fixed assets, inventory list No. 2 of inventory values (inventories and expenses), inventory list No. 3 of inventory values (finished products) and the consolidated comparative statement on the results of inventory of property for the enterprise «Motor Sich», the compilation of which was organized by V.O. Boguslayev without adhering to the established content, contain not only inaccurate information regarding the date and grounds for conducting the inventory of property, but also do not reflect the results of the inventory of property of SE «Motor Sich» as of 1 September 1993.

In addition, by Order No. 234-IK dated 30 August 1993, the inventory commission was charged with the obligation to conduct a complete inventory as of 1 September 1993 in accordance with the requirements of Resolution No. 598.

According to the requirements of Resolution No. 598 and Procedure No. 07/01-04/62, SE «Motor Sich» in the period from 3 August 1993 to 10 September 1993 also needed to conduct indexation of the book value of fixed assets and depreciation deductions as of 1 August 1993, which was intentionally not conducted by the privatization commission.

According to the balance sheet of SE «Motor Sich» compiled as of 1 August 1993, the initial value of fixed assets at the end of the reporting period amounted to 440,531,703,000 karbovanets, which was equal to the value of the actual availability of fixed assets of SE «Motor Sich» contained in inventory list No. 1.

Thus, inventory list No. 1 of fixed assets, inventory list No. 2 of inventory values (inventories and expenses), inventory list No. 3 of inventory values (finished products) and the consolidated comparative statement on the results of inventory of property for the enterprise «Motor Sich», were compiled without taking into account the requirements of Resolution No. 598 and Procedure No. 07/01-04/62, and contain information regarding the value of the property of SE «Motor Sich» without calculation of mandatory indexation.

With the aim of concealing failure to comply with the requirements of Resolution No. 598 and Procedure No. 07/01-04/62, which consisted in not taking into account the indexation of the book value of fixed assets during the inventory of SE «Motor Sich», which would subsequently create conditions for undervaluation of the enterprise property value during its privatization, knowingly inaccurate information was entered in the protocol on the general results of the inventory that the inventory was conducted taking into account indexation of fixed assets in accordance with Resolution No. 598.

In addition, in the said protocol it was stated that in accordance with Order No. 234-IK dated 30 August 1993, the inventory commission considered and approved the results of the inventory as of 1 August 1993, and not as of 1 September 1993, which contradicts the said order.

Contrary to the requirements of the Methodology for Valuation of Objects of Privatization approved by Resolution of the Cabinet of Ministers of Ukraine dated 8 September 1993 No. 717 (hereinafter – Methodology No. 717), SE «Motor Sich» did not generate a transfer balance sheet, which should have been developed based on the results of the conducted inventory and served as the basis for carrying out valuation of the property value.

After this, V.O. Boguslayev, being aware of the inaccuracy and inconsistency of the results of inventory of property of SE «Motor Sich», realizing the lack of actual conduct of inventory as of 1 September 1993 and non-application of indexation in accordance with Resolution No. 598 and Procedure No. 07/01-04/62, in the absence of a transfer balance sheet, under undetermined circumstances, in violation of the requirements of clauses 2 and 50 of Regulation No. 158, organized the compilation and signing of the protocol of the meeting of the inventory commission based on the results of the inventory of property of SE «Motor Sich».

According to the said protocol, the value of fixed assets of SE «Motor Sich» as of 1 August 1993 amounted to 440,531,710,000 karbovanets, the residual value of fixed assets – 331,779,034,000 karbovanets, intangible assets – 1,910,000 karbovanets, inventories minus depreciation and markup – 59,737,388,000 karbovanets, financial funds and accounts receivable – 21,453,806,000 karbovanets.

On the basis of inventory materials, knowingly improperly conducted as of 1 August 1993, and not as of 1 September 1993, without taking into account mandatory indexation and in the absence of a transfer balance sheet compiled not earlier than 1 September 1993, the privatization commission under the influence of V.O. Boguslayev, in the period from 5 November 1993 to 30 December 1993, conducted a valuation of the privatization object and drew up an act of valuation of the value of the integral property complex of SE «Motor Sich».

The estimated value of the property of SE «Motor Sich» was determined in the amount: book value of fixed assets 440,531,703 thousand karbovanets; value of the integral property complex 431,318,606 thousand karbovanets; value of excluded property 225,717,547 thousand karbovanets; value of property subject to privatization 218,188,950 thousand karbovanets; size of the statutory fund of the joint-stock company 218,188,950 thousand karbovanets.

Continuing to act in his own interests aimed at embezzlement of state property in especially large amounts and its subsequent privatization at an undervalued cost, V.O. Boguslayev, as chairman of the inventory commission and member of the privatization commission, organized the inclusion in the list of property subject to a special privatization regime of: equipment, buildings and structures not used as a result of conversion valued at 141,410,078,000 karbovanets; property of the logging area «Ileza» valued at 20,815,000 karbovanets; mothballed fixed assets related to the cessation of production of military-purpose products valued at 2,149,722,000 karbovanets.

The said assets did not have the status of objects of unfinished construction, financial investments in securities and shares of other enterprises, economic companies, banks, in interest-bearing bonds and loans, or contributions to the statutory funds of joint ventures, and therefore, as a result of their inclusion in the list of property subject to a special privatization regime, the value of the property of the integral property complex of SE «Motor Sich» and its statutory fund was unlawfully reduced by 143,580,615,000 karbovanets.

Having achieved the preparation by the inventory and privatization commissions of the above-mentioned package of privatization documents, V.O. Boguslayev, reliably knowing and realizing the conduct of valuation of the integral property complex of SE «Motor Sich» on the basis of inaccurate information, without taking into account mandatory indexation of fixed assets, in the absence of a transfer balance sheet, the unlawful undervaluation of the property value of the integral property complex, the exclusion of part of the property as not subject to privatization, under circumstances not precisely established, secured from the Chairman of the SPFU V.V. Pryadko the signing on 31 December 1993 of directive No. 272-ROM, which approved the act of valuation of the value of the integral property complex of SE «Motor Sich» with a significantly understated value.

The approved valuation act became the basis for compiling the privatization plan in accordance with Article 14 of the Law of Ukraine «On Privatization of Property of State Enterprises» dated 4 March 1992 and the Regulation on the Privatization Plan approved by Order of the SPFU dated 10 November 1992 No. 476 (hereinafter – Regulation No. 476).

To implement the scheme of unlawful privatization of JSC «Motor Sich», members of the labor collective, under the leadership of V.O. Boguslayev, back on 18 November 1993 entered into an agreement on joint activity, by which they established a partnership of buyers as a legal entity (registered on 6 January 1994), the purpose of whose activity was the buyout of the enterprise property. V.O. Boguslayev was included in the board of the partnership of buyers, which elected him as its chairman. Thus, V.O. Boguslayev created conditions for the subsequent buyout of the enterprise shares at an undervalued price and excluded the possibility of control over this process by outside persons.

In the period from 30 December 1993 to 4 May 1994, on the basis of the valuation act of the integral property complex of SE «Motor Sich», the privatization commission prepared a privatization plan, which on 4 May 1994 was approved by the SPFU by signing Order No. 28-AT «On Approval of the Privatization Plan and Transformation into a Joint-Stock Company of the State Enterprise 'Motor-Sich'», and by the Executive Committee of the Zaporizhzhia City Council of People's Deputies on 25 May 1994, Directive No. 708-r on the state registration of Joint-Stock Company «Motor Sich» was issued with the issuance of Certificate No. 199901 series AOO.

By the Ministry of Finance of Ukraine on 17 June 1994, Certificate of Registration of Securities Issue of JSC «Motor Sich» was issued for the amount of 218,188,950,000 karbovanets, including ordinary registered shares in the number of 2,077,990 units with a par value of 105,000 karbovanets.

The amount of material damage (losses) caused to the state as a result of the state budget under-receiving funds from the privatization of property of SE «Motor Sich» in connection with the unlawful exclusion from the total value of the integral property complex of property subject to privatization, failure to conduct mandatory indexation of the book value of fixed assets as of 1 August 1993, violations committed by the inventory commission under the chairmanship of V.O. Boguslayev and undervaluation of the estimated (inventory) value, amounts as of 17 June 1994 (the date of issuance of the certificate of registration of securities issue (shares)) to 93,528,150 karbovanets, and as of 2021, taking into account consumer price indices (inflation), amounts to UAH 18.05 billion.

Taking into account the above, V.O. Boguslayev, taking advantage of the negligent attitude of the Chairman of the SPFU V.V. Pryadko to his assigned official duties, pursuing his own mercenary interests aimed at embezzlement of state property in especially large amounts through unlawful privatization at an undervalued cost with subsequent misappropriation of the enterprise property through abuse of official position, being chairman of the inventory commission, member of the privatization commission, chairman of the board of the partnership of buyers of enterprise shares and head of SE «Motor Sich», in the period from 27 August 1993 to 4 May 1994 achieved the preparation, compilation, signing of a package of privatization documents,

including four Inventory lists of the inventory commission, the Protocol on the results of the inventory of property of SE «Motor Sich», the Act of valuation of the value of the integral property complex of SE «Motor Sich», the Privatization Plan of SE «Motor Sich», which contained inaccurate information regarding the true market value of the privatization object, did not take into account mandatory indexation of fixed assets, in the absence of a transfer balance sheet, having excluded thereby part of the property as not subject to privatization. The package of privatization documents organized by V.O. Boguslayev with knowingly inaccurate information regarding the value of SE «Motor Sich» became the basis for its unlawful privatization at prices significantly lower than market prices with the transformation of the enterprise into JSC «Motor Sich». The cited circumstances implemented the above-mentioned intent of V.O. Boguslayev, who after the unlawful privatization organized the subsequent buyout by him, as an individual, and by legal entities founded by him, of shares of JSC «Motor Sich» from nominal owners at prices (concessional) that were significantly lower than market prices.

Realizing that the buyout of shares of the newly created JSC «Motor Sich» was impossible without maintaining subsequent sole control over the enterprise, V.O. Boguslayev on 12 May 2014 [Note: in original text typed "12.05.2014"; 1994 by context] applied with letter No. op/4343 in which he proposed to appoint himself Chairman of the Board of JSC «Motor Sich», and to include in its composition predetermined persons under his control. On the same day, V.O. Boguslayev sent to the SPFU letter No. op/4342 with a proposal to include persons under his control in the composition of the audit commission of the enterprise, and on 17 May 1994 by letter No. op/4344 V.O. Boguslayev proposed to form the Supervisory Board of the enterprise exclusively from among the persons proposed by him.

Already on 20 May 1994, by Order of the SPFU No. 24-PAT, the personal composition of the Supervisory Board, the Board and the Audit Commission of the newly created JSC «Motor Sich» was approved with the composition of those persons who were proposed by V.O. Boguslayev. V.O. Boguslayev was appointed Chairman of the Board and simultaneously General Director, who to complete the realization of his criminal intent only needed to buy out shares from the labor collective at prices previously understated from unlawful privatization.

In such a way, V.O. Boguslayev gained control over the property embezzled as a result of unlawful privatization, having created conditions for subsequent final misappropriation thereof and conversion to his own benefit.

For this purpose, on 17 May 1994 V.O. Boguslayev proposed to the SPFU to form a commission for the sale of shares of JSC «Motor Sich» from among subordinate persons and persons under his control who worked at the given enterprise.

According to the proposals of V.O. Boguslayev, on 20 May 1994 the SPFU adopted Order No. 36-KPA regarding the sale of shares of JSC «Motor Sich», by which a commission for their sale was formed headed by V.O. Kazanskyi and other persons who were in their majority under the control of V.O. Boguslayev. The said commission systematically held its meetings at which issues of closed and open sale of shares were resolved

of the joint-stock company, settlements for them with privatization certificates, etc.

Along with this, controlling the progress of the sale and buyout of shares of JSC «Motor Sich» in his own interests, having a direct influence on the work of the commission for the sale of enterprise shares created on 20 May 1994, being chairman of the board of the partnership of share buyers, pursuing the intent to misappropriate as large a block of shares as possible for the purpose of acquiring legal capabilities of decisive influence on its activities already as a sole owner, on 24 February 1995 V.O. Boguslayev held the first general meeting of shareholders of JSC «Motor Sich» in the status of both General Director and Chairman of the Board. At the time of this meeting, 64.4% of shares were sold to 52,000 persons, 90% of whom were employees of the enterprise.

Following the results of the work of the first general meeting of shareholders of JSC «Motor Sich», it was decided to elect V.O. Boguslayev as Chairman of its Board.

To him as well, back on 9 February 1995 by the general meeting of representatives of the partnership of buyers of the enterprise «Motor Sich», the right of management of the single indivisible block of shares of a strategic investor (27% of shares) was transferred. The right of management of the single indivisible block of shares that was intended for sale to a foreign investor (17% of shares) was transferred to the management of V.H. Kazanskyi, who held the position of deputy to V.O. Boguslayev and was directly subordinate to him in the work of the enterprise.

Having gained full control over the activity of the already private joint-stock company, being its General Director as well as Chairman of the Board, acting as chairman of the board of the partnership of buyers, managing the single indivisible block of shares of a strategic investor, having direct influence on the management of the single indivisible block of shares intended for sale to a foreign investor, continuing to act in his own mercenary interests, taking advantage of the results of the unlawful privatization of SE «Motor Sich» at an undervalued market price, in the period from 17 June 1994 to 21 December 2015, V.O. Boguslayev, being in an undetermined place, directly and indirectly concentrated not less than 65% of the shares of JSC «Motor Sich» created on 25 May 1994, through buying them from the labor collective at a value understated by him, during pre-privatization preparation and formalization in the name of front persons, legal entities registered in the territory of Ukraine and non-resident companies, in particular those controlled by his son Oleksandr Vyacheslavovych Boguslayev.

In addition, V.O. Boguslayev used his official position to exert pressure on the enterprise employees for their sale of shares exclusively to companies controlled by V.O. Boguslayev and O.V. Boguslayev. Violation of the rules established by him could lead to the dismissal of an employee from JSC «Motor Sich».

Thus, in the period from 17 June 1994 to 13 March 2000, V.O. Boguslayev personally acquired 56,926 shares of JSC «Motor Sich», which constituted 2.739% of the total number.

Through a controlled dealer in the securities market, LLC «Firm 'Motor-Dealer'», 100% owner of which was JSC «Motor Sich», V.O. Boguslayev carried out

the purchase of shares of JSC «Motor Sich» from LLC «Firm 'Motor-Dealer'», which in turn bought them up from the labor collective of JSC «Motor Sich» and distributed them among various companies, in connection with which he owned various numbers of shares of JSC «Motor Sich».

Thus, as of 25 April 2002 he owned 348,455 shares (16.76885%), and as of 10 February 2015 – 316,932 shares (15.2519%).

Prior to the conclusion of the agreement with representatives of the People's Republic of China regarding the sale of all shares of JSC «Motor Sich» belonging to him and controlled by him, V.O. Boguslayev as of 6 October 2015 directly controlled 328,007 shares (15.7848%), of which 311,699 shares (15%) he sold to Chinese companies.

Companies controlled by V.O. Boguslayev, Business House Helena A.G. (Panama, code - 425217) and LLC «Vostochno-Evropeyskiy Alyans» (RF, code - 1047796704), in the period from 17 June 1994 to 17 June 2005, acquired into ownership 157,186 shares (Business House Helena A.G. – 74,994 shares (3.61%), LLC «Vostochno-Evropeyskiy Alyans» - 82,192 shares (3.955%)).

In the period from 17 June 2005 to 25 January 2006, Business House Helena A.G. increased its holding of shares of JSC «Motor Sich» to 125,880 units (6.058%).

From 16 June 2006 to 22 March 2007, through purchasing shares of JSC «Motor Sich» from Bartens Alliance Ltd (USA, code - 2003113035), V.O. Boguslayev increased the share controlled by him by 546,440 shares, namely: Business House Helena A.G. increased its share by 69,463 shares and came to own 195,343 shares (9.4006%); LLC «Motor-Intercoms» (code 32372401) acquired into ownership 201,565 shares (9.7%); PrJSC «TD 'Olena'» (code 31051118) acquired into ownership 193,220 shares (9.2984%); LLC «Vostochno-Evropeyskiy Alyans» increased its share to 164,384 shares (7.9107%).

The company controlled by V.O. Boguslayev, Enfields Trade & Capital Corp. (Panama, code - 542042), from 22 March 2007 to 24 January 2008 acquired into ownership 10,646 shares of JSC «Motor Sich» (0.51232%).

The company controlled by V.O. Boguslayev, Granum Corporation (Panama, code - 538069), from 27 March 2009 to 1 February 2010 acquired into ownership 201,565 shares of JSC «Motor Sich» (9.7%), through purchasing 196,743 shares from Bartens Alliance Ltd and other sellers.

From 16 March 2012 to 3 April 2012, company Enfields Trade & Capital Corp. increased its share of holding of shares of JSC «Motor Sich» and came to own 26,240 shares (1.26276%).

In the period from 3 April 2012 to 12 February 2013, by V.O. Boguslayev shares of JSC «Motor Sich» were redistributed from LLC «Vostochno-Evropeyskiy Alyans» to Business House Helena A.G., after which LLC «Vostochno-Evropeyskiy Alyans» withdrew from among shareholders of JSC «Motor Sich», and Business House Helena A.G. increased its share by 164,384 shares and came to own 359,727 shares (17.3113%).

The company controlled by V.O. Boguslayev, Waldo Trade Ltd. (British Virgin Islands, code - 1535383), from 16 March 2012 to 3 April 2012 acquired into ownership 3,261 shares of JSC «Motor Sich» (0.15693%), and subsequently by 12 February 2013 increased the number to 43,511 shares (2.0939%).

In the period from 31 March 2014 to 1 September 2014, Waldo Trade Ltd. reduced its holding of shares of JSC «Motor Sich» by 16,425 shares through their sale to the company controlled by V.O. Boguslayev, Tabernus Corp (Panama, code - 792582), following the results of which Waldo Trade Ltd. came to control 27,086 shares (1.3035%), and Tabernus Corp – 16,425 shares (0.7904%).

In addition to this, Enfields Trade & Capital Corp. in the period from 3 April 2012 to 12 February 2013 increased the number of shares in JSC «Motor Sich» to 64,733 (3.1152%).

Thus, in the period from 17 June 1994 to 1 September 2014, non-resident companies and legal entities in Ukraine (whose owner were other non-resident companies) controlled by V.O. Boguslayev as the actual beneficial owner formed a block of shares of JSC «Motor Sich» in the number of 1,038,996 shares, which constitutes 50% of the total number of issued shares, namely: Business House Helena A.G. – 359,727 (17.3113%), LLC «Motor-Intercoms» – 201,565 (9.69%), PrJSC «TD 'Olena'» – 193,220 (9.2984%), Granum Corporation – 192,665 (9.2717%), Enfields Trade & Capital Corp. – 64,733 (3.1152%), Waldo Trade Ltd. – 27,086 (1.3035%).

Thus, Boguslayev Viacheslav Oleksandrovych is reasonably suspected of misappropriation of another's property through abuse by an official of their official position, in especially large amounts, that is, of committing a criminal offense provided for by Part 5 of Article 191 of the CC of Ukraine.

During 2013, in connection with democratic processes taking place on the territory of Ukraine, representatives of the authorities of the RF and officials from among the leadership of the Armed Forces of the Russian Federation (hereinafter – AF of the RF), pre-trial investigation and judicial consideration regarding whom is carried out in other criminal proceedings, conceived a criminal intent to commit unlawful actions aimed at violating the sovereignty and territorial integrity of Ukraine, changing the boundaries of its territory and state border in violation of the procedure established by the Constitution of Ukraine.

The motives of the specified intent were the European integration course of development of Ukraine, preparation for signing the Association Agreement between Ukraine and the European Union, the European Atomic Energy Community and their member states, which were regarded by representatives of the authorities and the AF of the RF as an immediate threat to the economic and geopolitical interests of the RF, which would facilitate the loss of influence over political processes in Ukraine and deprive control over its economic activity, lead to deepening of Ukraine's cooperation with the North Atlantic Treaty Organization (NATO) with the aim of achieving criteria necessary for acquiring membership in this organization and possible denunciation of agreements regarding the temporary stationing of the Black Sea Fleet of the RF on the territory of Ukraine – in the AR of Crimea and the city of Sevastopol.

The accomplices from among representatives of the authorities and the AF of the RF decided to achieve their criminal purpose through unleashing and waging an aggressive war against Ukraine

using subordinate units and servicemen of the AF of the RF, including those stationed on the basis of international agreements on the territory of the AR of Crimea and the city of Sevastopol, as well as involving in the execution of the criminal plan other persons, including citizens of Ukraine and the RF, creating and financing armed formations not provided for by law and committing other crimes.

At the same time, they realized that such unlawful actions would lead to violation of the sovereignty and territorial integrity of Ukraine, unlawful change of the boundaries of its territory and state border, infliction of significant material damage and other grave consequences, which they foresaw and sought their occurrence.

With the aim of implementing the said intent during 2013 on the territory of the RF, officials of the General Staff of the Armed Forces of the Russian Federation (hereinafter – GS of the AF of the RF), in execution of orders and under the direct leadership of representatives of the authorities and officials of the AF of the RF, pre-trial investigation and judicial consideration regarding whom is carried out in other criminal proceedings, developed a criminal plan that provided for achieving military-political goals of the RF, which, in the opinion of the accomplices, were directly related to the necessity of unlawful occupation and subsequent annexation of the AR of Crimea, the city of Sevastopol and south-eastern regions of Ukraine and, alongside the application of political, diplomatic, economic and information measures, using the protest potential of the population of the south-eastern regions of Ukraine for organizing separatist referendums aimed at violating the territorial integrity of Ukraine.

Considering that the territory of the AR of Crimea and the city of Sevastopol had the greatest military-strategic importance for representatives of the authorities and the AF of the RF among other territories of Ukraine that were the object of their criminal encroachment, as well as the fact that units of the Black Sea Fleet of the Russian Federation (hereinafter – BSF of the RF) were stationed on the specified territory, this facilitated the most concealed use of regular troops of the AF of the RF alongside other elements of hybrid warfare, and therefore the accomplices of the criminal plan decided to begin waging hybrid war against Ukraine on the territory of the Crimean peninsula.

For the effective implementation of the plan, it was decided to involve servicemen of the AF of the RF, officers of other law enforcement agencies of the RF, representatives of the authorities, other citizens of the RF and Ukraine. In addition, for this same purpose, representatives of the authorities of the RF created and armed irregular unlawful armed formations, armed gangs and groups of mercenaries led by officers of special services and the AF of the RF.

Thus, starting from 20 February 2014, to implement the above-mentioned intent, with the aim of blocking and seizing administrative buildings and key objects of military and civilian infrastructure to ensure military occupation and subsequent annexation by the RF of the territory of the AR of Crimea and the city of Sevastopol, an invasion by military, naval and air transport of separate units of the AF of the RF into the territory of the sovereign state of Ukraine, namely the AR of Crimea and the city of Sevastopol, was carried out.

Subsequently, servicemen of the AF of the RF carried out the seizure of buildings of central authorities of the AR of Crimea and established control over their

activities with the aim of ensuring the adoption of decisions advantageous and necessary for the RF. In addition, blocking of motorways, seizure of airports and transport enterprises, military units of the AF of Ukraine, damage and destruction of military property having important defense significance for Ukraine was carried out.

Thereupon, contrary to international legal order, disregarding the state sovereignty and territorial integrity of Ukraine, starting from 20 February 2014, representatives of the authorities of the RF and officials of the AF of the RF began an armed invasion of regular troops of the RF into the territory of Ukraine with the aim of changing the boundaries of the territory and state border of Ukraine, in violation of the procedure established by the Constitution of Ukraine, and military occupation of the territory of the AR of Crimea and the city of Sevastopol.

Also, representatives of the authorities and the AF of the RF committed actions to change the boundaries of the territory and state border of Ukraine in other territory of Ukraine.

Thus, by the indicated persons in March – April 2014 anti-government protest actions were organized and held, the most massive of which were in Luhansk, Donetsk, Kharkiv, Dnipropetrovsk, Zaporizhzhia, Mykolaiv, Kherson and Odesa regions with the aim of spreading separatist pro-Russian slogans and carrying out forceful seizure of administrative buildings of state power bodies for the subsequent organization of unlawful referendums aimed at violating the territorial integrity of Ukraine.

With the aim of guaranteed achievement of the indicated goals and creating the appearance that an internal conflict is ongoing in Ukraine, representatives of the authorities and the AF of the RF decided to create on its territory terrorist organizations which, alongside their main function – conducting terrorist activity, created the impression of activity within Donetsk and Luhansk regions of opposition forces that allegedly on behalf of and with the complete support of the local population defend their right to self-determination and independence, which directly contradicts the Constitution of Ukraine and norms of international law.

Thus, under the direct leadership and control of representatives of the authorities and the AF of the RF undetermined at this time, on 07 April 2014 on the territory of Donetsk region of Ukraine the terrorist organization «Donetsk People's Republic» (hereinafter – «DPR») was created, and on 27 April 2014 on the territory of Luhansk region of Ukraine – the terrorist organization «Luhansk People's Republic» (hereinafter – «LPR»), in the composition of which unlawful armed formations were formed that functioned until March 2022 until the higher political leadership of the RF carried out a series of measures for their accession to the RF with unlawful inclusion in its territorial boundaries of territories, in particular, of Donetsk and Luhansk regions.

Control and coordination of activity of these terrorist organizations, as well as their financial and material support, including with weapons, ammunition, military equipment, was carried out by representatives of the authorities and the AF of the RF.

The main tasks of the participants of the indicated terrorist organizations were the violent overthrow of the constitutional order, seizure of state power in Ukraine, change of boundaries of the territory and state border of Ukraine in violation

of the procedure established by the Constitution of Ukraine, through the use of weapons, commission of terrorist acts – carrying out explosions, arsons and other actions that create a danger to human life and health, threat of inflicting significant property damage and occurrence of other grave consequences.

Unlawful armed formations of the terrorist organizations «DPR» and «LPR», irregular armed formations of the RF and servicemen of the AF of the RF offer armed resistance to Ukraine in restoring territorial integrity and ensuring legal order, while participants of the political bloc of the indicated terrorist organizations, with the support and assistance of representatives of the authorities of the RF under the guise of state power bodies, created occupational administrations of the Russian Federation, which ensure subsequent occupation and exercise governance over the indicated territories at the local level.

In view of the above, between the states of the RF and Ukraine since 20 February 2014 an armed conflict of an international character has been ongoing.

The above-mentioned facts of the unleashing and waging by the RF of an aggressive war against Ukraine, conduct of subversive activity, seizure of state institutions, organizations and military units from 27 February 2014 were widely covered by most mass media of Ukraine and foreign states, are universally known facts, in connection with which they were reliably known to V.O. Boguslayev and O.V. Boguslayev.

On the basis of Council of the European Union Decision No. 2014/512/CFSP dated 31 July 2014 concerning restrictive measures (sanctions) in view of Russia's actions destabilising the situation in Ukraine, the direct or indirect sale, supply, transfer or export of arms and related materiel of all types, including weapons and ammunition, military vehicles and equipment, paramilitary equipment, and spare parts therefor, to Russia by nationals of Member States or from the territories of Member States or using vessels or aircraft under their flag, shall be prohibited whether originating or not in their territories (Article 2).

By Decree of the President of Ukraine dated 15 March 2017 No. 62/2017 «On the Decision of the National Security and Defense Council of Ukraine of 15 March 2017 'On Urgent Additional Measures to Counter Hybrid Threats to the National Security of Ukraine'», temporarily, until the implementation of clauses 1 and 2 of the Minsk «Package of Measures» of 12 February 2015, and also until the return of seized enterprises to functioning in accordance with the legislation of Ukraine, the movement of cargo across the line of contact within Donetsk and Luhansk regions was terminated.

As of 2014, Joint-Stock Company «Motor Sich» (hereinafter JSC «Motor Sich») was an executor of the state defense order for repair and modernization of aviation equipment, and also had important significance for the economy and defense capability of Ukraine. JSC «Motor Sich» conducted active export activity, had a number of representative offices abroad Ukraine, including in countries of the European Union.

JSC «Motor Sich» takes a significant part in the development, repair, modernization and restoration of aviation equipment of the Armed Forces of Ukraine. The state defense order provided for the purchase of aircraft engines TV3-117VMA-SBM1V series 4E and modernization of helicopters with conduct of repair taking into account technical condition: Mi-8TP to the type Mi-8 MSB-V; Mi-2 to the type Mi-2 MSB; Mi-8T (Mi-9) to the type Mi-8 MSB-V.

JSC «Motor Sich» is a unique serial enterprise that produces more than 28 types of serial aircraft engines, each of which is also unique. The enterprise has important significance for the national economy of Ukraine, namely: a significant number of workers work at the enterprise; economic activity of the enterprise provides orders to dozens of enterprises of Ukraine in machine building, metallurgy, electronics, chemical industry, logistics sphere, air transport and others. Engines of JSC «Motor Sich» are used on helicopters of army aviation, as well as on aircraft of military transport aviation.

JSC «Motor Sich» as of February 2014 had a significant number of structural subdivisions closely connected by production processes. Among them was the Snizhne Machine-Building Plant in the city of Snizhne, Donetsk region, city of Snizhne.

V.O. Boguslayev since 1988 held managerial positions at the enterprise «Motor Sich». By Order of the Minister of Aviation Industry No. 227/k dated 10 March 1988, he was appointed General Director of the Zaporizhzhia Production Association «Motorobudivelnyk» (in 1991 renamed to enterprise «Motor Sich»).

In 1994, the enterprise «Motor Sich» was transformed into Joint-Stock Company «Motor Sich». By Order of the Chairman of the State Property Fund No. 24-PAT dated 20 May 1994, V.O. Boguslayev was approved as Chairman of the Board, General Director of JSC «Motor Sich».

According to the protocol of the general meeting of shareholders No. 5 dated 11 March 1999, V.O. Boguslayev was elected Chairman of the Board – General Director of Open Joint-Stock Company «Motor Sich». According to the protocol of the general meeting of shareholders No. 12 dated 16 March 2006, V.O. Boguslayev was elected Chairman of the Board of Directors – General Director of Open Joint-Stock Company «Motor Sich». According to the protocol of the meeting of the Board of Directors No. 51 dated 28 April 2006, V.O. Boguslayev was dismissed in connection with transfer to an elective position (from 25 May 2006 to 29 August 2019, V.O. Boguslayev was a People's Deputy of Ukraine of the 5th–8th convocations).

Despite the fact of holding an elective position, V.O. Boguslayev maintained control over JSC «Motor Sich» and through participation, in particular, in the inter-parliamentary commission on cooperation between the Verkhovna Rada of Ukraine and the Federal Assembly of the Russian Federation, the group on inter-parliamentary relations with the Republic of India, the United Arab Emirates, the Russian Federation, the Republic of Belarus, the Republic of Kazakhstan, the People's Republic of China, the Democratic Socialist Republic of Sri Lanka, the Republic of Indonesia expanded sales markets and the level of cooperation of the enterprise in the international arena.

Shares of JSC «Motor Sich» as of 1 September 2014 were held by:

– 314,558 shares (15.1376%) – Viacheslav Oleksandrovych Boguslayev;

– 359,727 shares (17.3113%) – JSC Business House Helena A.G., owner of the specified company since 22 July 2014 Katran Ltd. (Republic of Cyprus, registration No. HE 332472). Beneficial owner – Ye.O. Vnukov;

– 201,565 shares (9.7%) – LLC «Motor-Interkoms», owner of the specified company Croftdale Investments Limited (Belize, registration number – 153,418), which since 30 March 2015 is owned by Calloway Finance Limited (Belize, registration No. 153,419). Beneficial owner – O.V. Boguslayev;

– 193,220 shares (9.2984%) – PrJSC «TD «Olena», owner Montagne Ltd. (state affiliation – Belize, registration number – 152,267), which since 30 March 2015 is owned by Longwizard Corp (Belize, registration No. 152,228). Beneficial owner – A.P. Kononenko;

– 192,665 shares (9.2717%) – Granum Corporation (Republic of Panama, registration number – 538069), which since 22 July 2014 is owned by Laterson Management Group Ltd. (Seychelles, registration No. 146975). Beneficial owner – L.V. Sushchenko;

– 64,733 shares (3.1152%) – Enfields Trade & Capital Corp. (Republic of Panama, registration number – 542042), which since 22 July 2014 is owned by Stamio Investments Ltd. (Republic of Cyprus, registration No. HE 332799). Beneficial owner – O.V. Boguslayev;

– 27,086 shares (1.3035%) – Waldo Trade Ltd. (British Virgin Islands, registration number – 1535383), which since 13 June 2014 was owned by Taladin Limited (Belize, registration No. 145, 704). Beneficial owner – L.S. Trufanova;

– 16,425 shares (0.7904%) – Tabernus Corp. (Republic of Panama, registration No. 792582) since 17 February 2016 owner – Addison Business Ltd. (British Virgin Islands). Beneficial owner – O.V. Boguslayev, L.V. Sushchenko (born on 28 February 1958, native of the city of Zaporizhzhia).

Prior to 2014, cooperation between JSC «Motor Sich» and enterprises of the military-industrial complex of the Russian Federation was carried out within the framework of production and scientific-technical cooperation of defense industry enterprises. The main consumers of aircraft engines were the Kazan and Rostov Helicopter Plants, as well as aircraft engine manufacturing enterprises of the RF. Supply of goods was carried out through Russian enterprises controlled by JSC «Motor Sich», in particular on the basis of permits of the State Service of Export Control of Ukraine.

In the structure of JSC «Motor Sich» there were a number of separate subdivisions that manufactured components for the production of aircraft engines by the main enterprise, among which was the Snizhne Machine-Building Plant.

According to the Articles of Association of JSC «Motor Sich», Snizhne Machine-Building Plant (hereinafter – SU «SMZ») is part of JSC «MOTOR SICH» as a separate subdivision without the rights of a legal entity, with the right to open current or settlement accounts, and operates on the basis of the Regulations.

Under the Regulations approved on 21 July 2011 by the Supervisory Board of JSC «Motor Sich», the subject of activity of SU «SMZ» is the preparation and organization of experimental and serial production of parts and assembly units for aircraft engines, aviation equipment. Development and maintenance of technological documents for parts and assembly units for aircraft engines, aviation equipment. Upon agreement with the management of the Company, performance of certain types of foreign economic activity in material-technical support of production, export, import of industrial, scientific-technical products, intellectual property, consumer goods and other products. Ensuring service and warranty maintenance of supplied products. The plant concludes economic agreements (contracts) on behalf of the Company, the list and types of which are agreed with the chairman of the board of directors of the Company, and bears responsibility for them with the property assigned to the enterprise.

By types of activity, SU «SMZ», among others, specializes in the production of other finished metal products, using the production capacities of which, as of 2014, a significant number of item names of parts for various purposes was manufactured, among which were guide and stator vanes of compressors and turbines of aircraft engines.

V.O. Boguslayev, from February 2014, effectively exercising management of JSC «Motor Sich», economic activities and separate subdivisions in the form of strategic and current management, planning, personnel management, production, marketing, finances, investments, being in an unidentified place, organized the conduct of economic activities of SU «SMZ» and sale of products in the form of vanes for aircraft engines TV3-117, AI-20, AI-24, AI-25/Tl/TLK, AI-322, D36, D136, D336, MS-400.

Pursuant to the Order of the Cabinet of Ministers of Ukraine dated 7 November 2014 No. 1085-r «On Approval of the List of Settlements on the Territory of which Public Authorities Temporarily Do Not Exercise Their Powers, and the List of Settlements Located on the Contact Line», the city of Snizhne of Horlivka district of Donetsk region was included in the list of settlements on the territory of which public authorities temporarily do not exercise their powers. In fact, the city of Snizhne has been under the occupation of Russian troops since April 2014.

V.O. Boguslayev, being reliably aware that SU «SMZ» is located on the territory of Ukraine temporarily occupied by the Russian Federation in Donetsk region where activities of Ukrainian authorities are temporarily not carried out, by virtue of which, as well as norms of current legislation of Ukraine, the conduct of further economic activity of the latter is impossible. Being aware that functions of the occupational administration of the Russian Federation on the specified occupied territory of Ukraine are exercised by the terrorist organization «DPR», acting intentionally, out of mercenary motives, no later than September 2014 (the exact date has not been established by the pre-trial investigation body at this time), regardless of restrictive measures applied by Ukraine and

the Council of the European Union, ensured financing of the activities of the terrorist organization «DPR» in the form of supplying raw materials to the occupied territory and receiving products manufactured under his full and administrative control as a result of economic activities of SU «SMZ».

Thus, as a result of cooperation in the period of 2014–2019 of JSC «Motor Sich» with the terrorist organization «DPR» and the RF, property rights to JSC «Motor Sich» become assets associated with terrorism and its financing.

V.O. Boguslayev, understanding that the beginning of an aggressive war closes the established sales markets in the RF for products manufactured by JSC «Motor Sich». He will not be able to ensure prolonged unlawful use in production processes of JSC «Motor Sich» of products manufactured by SU «SMZ» on the territory of Donetsk region of Ukraine temporarily occupied by the RF and controlled by the terrorist organization «DPR». No later than 2014, the exact time has not been established by pre-trial investigation, V.O. Boguslayev realized that the shares of JSC «Motor Sich» unlawfully acquired by him during illegal privatization acquire the status of an asset associated with terrorism or its financing. Fearing detection by law enforcement bodies of Ukraine of the criminal activities of the enterprise JSC «Motor Sich» in facilitating the activities of the terrorist organization «DPR», and as a consequence, blocking or seizure of the asset belonging to him, V.O. Boguslayev decided to carry out the sale of such asset with subsequent laundering (legalization) of funds from the sale of property rights obtained by him through criminal means, through misappropriation by way of illegal privatization with the purchase of shares at undervalued prices using his official position.

Legalization of funds from the illegal sale of shares of JSC «Motor Sich» envisaged subsequent commission of a series of transactions in foreign jurisdictions without the knowledge of the Ukrainian government, in violation of the concentration procedure, with the execution of financial transactions involving concealing and disguising the illegal origin of such funds, the sources of their origin, location, movement, changing their form into other currencies to give them the appearance of legality during relevant verifications of origin of assets.

Using his name and influence of a People's Deputy of Ukraine, without relinquishing operational control and accountability of officials of JSC «Motor Sich», V.O. Boguslayev, being the de facto owner of the controlling stake of shares of the enterprise in the amount of 65% and concealing this from the Ukrainian government, in 2014 entered into negotiations with citizens of the People's Republic of China regarding transferring to them for monetary consideration the rights to manage the activities of JSC «Motor Sich».

At the same time, citizens of the People's Republic of China as of 2014 understood that the invasion of the RF into the territory of Ukraine, application of national and European sanctions closed the sales market for products of JSC «Motor Sich» in the RF, and the facts of unlawful cooperation with the terrorist organization «DPR» to maintain the production cycle are temporary in nature, which significantly affects the price of the unlawful, yet unique production asset. Citizens of the People's

Republic of China agreed to accept ownership and management of JSC «Motor Sich» on conditions proposed by V.O. Boguslayev.

V.O. Boguslayev, understanding that in a legal manner, that is, in accordance with Ukrainian national legislation, he would not be able to sell property rights to JSC «Motor Sich» that belonged to him personally (15%) and indirectly through legal entities controlled through the mediation of his son (49.7%), involved Oleksandr Vyacheslavovych Boguslayev to ensure the sale of the unlawfully acquired asset associated with financing of terrorism, and concealing the source of funds obtained from such sale, by means of disguising financial transactions with transferring them to foreign jurisdictions.

O.V. Boguslayev, understanding the unlawful nature of activities of JSC «Motor Sich» in financing and otherwise facilitating the terrorist organization «DPR» on the temporarily occupied territory of Donetsk region of Ukraine, and also in violation of existing prohibitions, gave his consent to commit the legalization (laundering) of property obtained by criminal means.

According to the assigned role, O.V. Boguslayev was to ensure disguising the sources of origin of funds during their transfer to bank accounts in foreign jurisdictions linked to him and his father – V.O. Boguslayev, as well as create documentary appearance of sale of shares of JSC «Motor Sich». O.V. Boguslayev understood that in accordance with current legislation of Ukraine and in the conditions of war with the RF it was not possible to carry out a lawful unhindered sale of property rights to JSC «Motor Sich». With the aim of realizing their criminal intents, V.O. Boguslayev and O.V. Boguslayev involved other persons, currently not identified during the pre-trial investigation, who were engaged in documentary execution and submitting documents for signature, conducted technical negotiations with transaction participants, and organized communication with banking institutions.

Due to such circumstances, V.O. Boguslayev and O.V. Boguslayev, acting secretly, jointly, and intentionally, did not inform the government of Ukraine about their criminal intents, as well as about all circumstances of the sale of shares of JSC «Motor Sich» to citizens of the PRC.

V.O. Boguslayev, being reliably aware that he is the de facto owner of 65% of shares of JSC «Motor Sich», which constitutes a controlling stake of shares of the enterprise, and the sale of it to a single buyer requires permission of the Ukrainian government represented by the Antimonopoly Committee of Ukraine for concentration, with the aim of disguising unlawful transactions, prompted representatives of the PRC to register a number of legal entities with the aim of subsequently evading share concentration.

Thus, with the aim of selling shares of JSC «Motor Sich», without the permission for concentration provided for by law, in addition to V.O. Boguslayev himself (holder of 15%), the following offshore companies controlled by him and O.V. Boguslayev participated (holders of 49.7%):

1. Katran Ltd. (Republic of Cyprus, registration No. HE 332472). Owner – Davsone Limited (Republic of Cyprus, registration No. HE 267042). Beneficial owner – Ye.O. Vnukov (born on 1 March 1982), who is the brother of the wife of

O.V. Boguslayev (maiden name – Vnukova). General power of attorney to perform actions dated 20 May 2014 was issued in the name of O.V. Boguslayev;

2. Calloway Finance Limited (Belize, registration No. 153,419). Owner – Carlos Alberto Weand Ortiz. Beneficial owner – O.V. Boguslayev;

3. Longwizard Corp (Belize, registration No. 152,228). Owner according to register – Modena Corporation (Belize, registration No. 87,811). Beneficial owner – A.P. Kononenko (born on 18 October 1982) is a close friend of O.V. Boguslayev, and his father Petro Kononenko is a business partner of the Boguslayev family, headed the representative office of JSC «Motor-Sich» in the UAE, and in Ukraine has the status of an accused under Art. 258-3 of the Criminal Code of Ukraine (terrorism);

4. Laterson Management Group Ltd. (Seychelles, registration No. 146975). Owner according to register – Tritan Ltd (Seychelles, registration No. 121818). Beneficial owner – L.V. Sushchenko (born on 28 February 1958) trusted person of the Boguslayev family;

5. Stamio Investments Ltd. (Republic of Cyprus, registration No. HE 332799). Owner – Addison Business Ltd (British Virgin Islands). Beneficial owner – O.V. Boguslayev;

6. Taladin Limited (Belize, registration No. 145,704). Owner according to register – Walford Corporation (Seychelles, registration No. 121717). Beneficial owner – L.S. Trufanova (born on 26 March 1954), sister of V.O. Boguslayev. General power of attorney dated 30 May 2014 in the name of O.V. Boguslayev;

In turn, on the part of citizens of the People's Republic of China, for concluding transactions regarding purchase of 49.7% of shares of JSC «Motor Sich», the following companies were represented:

1. Reckoner Investments Holdings Limited (Republic of Cyprus, registration No. HE 342484);

2. Argio Investment Holdings Limited (Republic of Cyprus, registration No. HE 342329);

3. Skyrizon Aircraft Holdings Limited (British Virgin Islands, registration No. 1776352);

By O.V. Boguslayev, in execution of the joint intent with V.O. Boguslayev regarding legalization of the asset associated with facilitating and financing terrorist activity during the period of 2014–2016, documentary execution of agreements was ensured with the aim of carrying out financial transactions for disguising and transferring to bank accounts in foreign jurisdictions 650 million US dollars.

On 19 December 2014, the «Escrow Agreement» was signed between Skyrizon Aircraft Holdings Limited as Buyer represented by director Wang Jing, Laterson Management Group Ltd as Seller represented by nominal representative by proxy L.V. Sushchenko, and UBI Banca International S.A. as Escrow Agent.

Under the terms of the agreement, the escrow amount is 25 million US dollars, which are deposited by the Buyer into the corresponding escrow account, and which are subsequently transferred to the Seller's account only after receiving notification regarding performance of all conditions of contractual relations between the Buyer and the Seller. At UBI Banca International S.A.

a special escrow account No. 986949 was opened, account holder – SKYRIZON/LATERSON ESCROW ACCOUNT, IBAN: LU68 3010 9869 49US D001, to which on 29 December 2014 funds in the amount of 25 million US dollars were received from Skyrizon Aircraft Holdings Limited.

On 29 May 2015, between the Sellers – Katran Ltd., Calloway Finance Limited, Longwizard Corp, Laterson Management Group Ltd., Stamio Investments Ltd., Taladin Limited and the Buyers – Reckoner Investments Holdings Limited, Argio Investment Holdings Limited, Skyrizon Aircraft Holdings Limited, the «Framework Agreement» was signed for a total amount of 500 million US dollars, including 25 million US dollars paid on 29 December 2014 into the escrow account, according to the terms of the Escrow Agreement dated 19 December 2014.

According to the terms of the Framework Agreement dated 29 May 2015, the Buyers acquired ownership of corporate rights to the non-resident companies, which in turn directly owned 49.97% of shares of JSC «Motor Sich».

V.O. Boguslayev, acting by prior conspiracy with O.V. Boguslayev, in the period from June to December 2015, understanding future resistance to their unlawful actions on the part of the Ukrainian government, in particular represented by the Antimonopoly Committee of Ukraine, concealing the unlawful nature of their actions regarding alienation of shares of JSC «Motor Sich», induced citizens of the PRC to change the prior agreement. To disguise the transaction of sale of shares, the subject of the contracts became corporate rights of companies that indirectly own shares of JSC «Motor Sich».

On 21 December 2015, between the above-mentioned participants, a new version of the «Framework Agreement» dated 29 May 2015 was concluded, under the terms of which the total cost of the agreement is 607 million US dollars, of which 25 million US dollars had already been transferred under the terms of the Escrow Agreement dated 19 December 2014, and the remaining amount of 582 million US dollars will be transferred to a new escrow account according to the terms of the new Escrow Agreement. The Sellers carry out the sale of 100% of corporate rights to non-resident companies, which in turn directly or indirectly own 49.97% of shares of JSC «Motor Sich».

In execution of the said «Framework Agreement», the following operations are conducted:

1) Katran Ltd. carries out the sale of 100% of authorized capital of the company Business House Helena A.G. to the company Reckoner Investments Holdings Limited for 211.52 million US dollars, as a result of which Reckoner Investments Holdings Limited acquires ownership of 17.31% of shares of JSC «Motor Sich»;
2) Calloway Finance Limited carries out the sale of 100% of authorized capital of the company Croftdale Investments Limited to the company Argio Investment Holdings Limited for 118.40 million US dollars, as a result of which Argio Investment Holdings Limited acquires ownership of 9.69% of shares of JSC «Motor Sich». In turn, the company Croftdale Investments Limited owns 100% of authorized capital of LLC «Motor-Intercoms» (code 32372401), which is the direct owner of shares of JSC «Motor Sich»;
3) Longwizard Corp carries out the sale of 100% of authorized capital of the company Montagne Ltd. to the company Argio Investment Holdings Limited for 114.40 million US dollars, as a result of which Argio Investment Holdings Limited acquires ownership of 9.29% of shares of JSC «Motor Sich». In turn, the company Montagne Ltd. owns 100% of authorized

capital of PrJSC «Trading House «Olena» (code 31051118), which is the direct owner of shares of JSC «Motor Sich»;

4) Laterson Management Group Ltd. carries out the sale of 100% of authorized capital of the company Granum Corporation to the company Skyrizon Aircraft Holdings Limited for 82.98 million US dollars, as a result of which Skyrizon Aircraft Holdings Limited acquires ownership of 9.27% of shares of JSC «Motor Sich»;

5) Stamio Investments Ltd. carries out the sale of 100% of authorized capital of the company Enfields Trade & Capital Corp. to the company Reckoner Investments Holdings Limited for 38.49 million US dollars, as a result of which Reckoner Investments Holdings Limited acquires ownership of 3.11% of shares of JSC «Motor Sich»;

6) Taladin Limited carries out the sale of 100% of authorized capital of the company Waldo Trade Ltd. to the company Reckoner Investments Holdings Limited for 16.21 million US dollars, as a result of which Reckoner Investments Holdings Limited acquires ownership of 1.3% of shares of JSC «Motor Sich»;

On 21 December 2015, the Escrow Agreement was signed by the Sellers – Katran Ltd., Calloway Finance Limited, Longwizard Corp, Laterson Management Group Ltd., Stamio Investments Ltd., Taladin Limited and the Buyers – Reckoner Investments Holdings Limited, Argio Investment Holdings Limited, Skyrizon Aircraft Holdings Limited, and UBI Banca International S.A. as Escrow Agent.

The authorized representative with the right to sign documents regarding the sale of 49.97% of shares of JSC «Motor Sich» on behalf of all 6 sellers Katran Ltd., Calloway Finance Limited, Longwizard Corp, Laterson Management Group Ltd., Stamio Investments Ltd., Taladin Limited was Oleksandr Vyacheslavovych Boguslayev.

At that, Laterson Management Group Ltd. owns 100% of authorized capital of Granum Corporation since 22 July 2014, Katran Ltd. owns 100% of authorized capital of Business House Helena A.G. since 22 July 2014, Stamio Investments Ltd. owns 100% of authorized capital of Enfields Trade & Capital Corp. since 22 July 2014, Taladin Limited owns 100% of authorized capital of Waldo Trade Ltd. since 13 June 2014, Longwizard Corp owns 100% of authorized capital of Montagne Ltd. since 30 March 2015, Calloway Finance Limited owns 100% of authorized capital of Croftdale Investments Ltd. since 30 March 2015.

According to the specified agreement, a special escrow account No. 987141 was opened in UBI Banca International S.A., account holder – Project Zoom Escrow Account, IBAN EUR: LU09 3010 9871 41EU R001, IBAN USD: LU61 301019871 41US D001, to which on 29 December 2015 funds in the amount of 582 million US dollars were received.

Along with this, in UBI Banca International S.A., bank accounts were opened by non-resident companies whose beneficial owner is O.V. Boguslayev, in the period from 13 January 2015 to 14 April 2016, namely:

Laterson Management Group Ltd. account No. 987012;

Katran Ltd. account No. 987113, Stamio Investments Ltd. account No. 987116;

Taladin Limited account No. 987114;

Calloway Finance Limited account No. 987115;

Longwizard Corp account No. 987112.

Performance of the terms of Framework Agreements by O.V. Boguslayev occurred in the period from 22 to 26 February 2016, after the actual re-registration of corporate rights from six non-resident companies that indirectly owned 49.97% of shares of JSC «Motor Sich» to three non-resident companies controlled by the group from the PRC.

After the actual performance of the terms of Framework Agreements on the sale of corporate rights of non-resident companies, to the above-mentioned bank accounts in the period from 22 February 2016 to 1 June 2016, the escrow agent UBI Banca International S.A. from special escrow accounts No. 986949 and No. 987141 transferred funds in the amount of 607 million US dollars to accounts of companies controlled by O.V. Boguslayev:

– from account No. 986949 to the account of Laterson Management Group Ltd. No. 987012 – 25 million US dollars;

– from account No. 987141 to the account of Laterson Management Group Ltd. No. 987012 – 82.98 million US dollars;

– from account No. 987141 to the account of Katran Ltd. No. 987113 – 211.52 million US dollars;

– from account No. 987141 to the account of Stamio Investments Ltd. No. 987116 – 38.49 million US dollars;

– from account No. 987141 to the account of Taladin Limited No. 987114 – 16.21 million US dollars;

– from account No. 987141 to the account of Calloway Finance Limited No. 987115 – 118.40 million US dollars;

– from account No. 987141 to the account of Longwizard Corp No. 987112 – 114.40 million US dollars.

By order of O.V. Boguslayev, the received funds in the amount of 607 million US dollars, with the aim of concealing their source and conversion, were converted into various currencies and systematically placed on short-term deposits, with the aim of converting these funds, giving them the appearance of legality during relevant verifications of origin of assets, obtaining profit from interest accrual.

In the period from 11 April 2016 to 29 June 2018, from the own accounts of 5 offshore non-resident companies opened in UBI Banca International S.A. (Luxembourg), by order of O.V. Boguslayev, to own accounts opened in banking institutions of the Principality of Monaco – UBP and Julius Bär, funds in the amount of 460.16 million US dollars, 15.4 million euros, 11.7 million pounds sterling were transferred.

Thus, Taladin Limited from its own accounts opened in UBI Banca International S.A. (Luxembourg), which was liquidated in January 2018, and accounts were transferred to EFG Bank (Luxembourg), to account No. 3042421 (opened – 20 June 2018, closed – 25 July 2018) in the banking institution UBP (Principality of Monaco), funds were received:

– 27 June 2018 from account No. LU563430004750031216 – 62,194.33 US dollars;

– 27 June 2018 from account No. LU563430004750031313 – 10,705.94 euros;

– 29 June 2018 from account No. LU503430004750031518 – 11,669,963.74 pounds sterling.

Calloway Finance Limited from its own accounts opened in UBI Banca International S.A. (Luxembourg) to account No. 3040771 (opened – 29 November 2017, closed – 25 July 2018) in the banking institution UBP (Principality of Monaco), on 18 December 2017 received funds from account No. LU 673010 987115 USD001 in the amount of 121,028,194.45 US dollars.

Katran Ltd. from its own accounts opened in UBI Banca International S.A. (Luxembourg) to account No. 3038178 (opened – 16 March 2017, closed – 14 August 2018) in the banking institution UBP (Principality of Monaco), received funds in the amount of 206,728,884 US dollars and 6,399,900 euros:

– 21 March 2017 from account No. LU603010 987113 USD001 – 10,999,962 US dollars;

– 29 June 2017 from account No. LU603010 987113 USD001 – 499,962 US dollars;

– 10 October 2017 from account No. LU603010 987113 USD001 – 195,228,960 US dollars;

– 27 April 2017 from account No. LU 083010 987113 EUR001 – 5,999,950 euros;

– 18 May 2017 from account No. LU 083010 987113 EUR001 – 399,950 euros.

Laterson Management Group Ltd. from its own accounts opened in UBI Banca International S.A. (Luxembourg) to account No. 3034379 (opened – 30 December 2015, closed – 28 July 2021) in the banking institution UBP (Principality of Monaco), on 18 April 2016 received funds in the amount of 4,999,962 US dollars from account No. LU463010 987012 USD001.

Laterson Management Group Ltd. from its own accounts of Laterson Management Group Ltd., opened in UBI Banca International S.A. (Luxembourg) to account No. 5188474 (opened – 21 April 2015, closed – 20 July 2018) in the banking institution Julius Bär (Principality of Monaco), received funds in the amount of 14,999,810 US dollars and 8,999,700 euros:

– 11 April 2016 from account No. 987012 – 2,999,962 US dollars;

– 31 May 2016 from account No. 987012 – 2,999,962 US dollars;

– 6 July 2016 from account No. 987012 – 2,999,962 US dollars;

– 29 July 2016 from account No. 987012 – 2,999,962 US dollars;

– 23 August 2016 from account No. 987012 – 2,999,962 US dollars;

– 21 September 2016 from account No. 987012 – 2,999,900 US dollars;

– 16 January 2017 from account No. 987012 – 2,999,900 US dollars;

– 27 April 2017 from account No. 987012 – 2,999,900 US dollars.

Longwizard Corp from its own accounts opened in UBI Banca International S.A. (Luxembourg) to account No. 5185358 (opened – 29 December 2017, closed – 15 July 2018) in the banking institution Julius Bär (Principality of Monaco), received funds in the amount of 112,343,886 US dollars:

– 4 April 2017 from account No. LU083010987112USD001 – 2,999,962 US dollars;

– 10 August 2017 from account No. LU083010987112USD001 – 2,999,962 US dollars;

– 18 September 2017 from account No. LU083010987112USD001 – 106,343,962 US dollars.

For the sale of 15% of shares of JSC «Motor Sich», V.O. Boguslayev acted personally as the seller. On the part of citizens of the People's Republic of China as buyers for

concluding transactions, the following were represented: Likatron Enterprises Limited (Republic of Cyprus, registration number – HE 340841) – 10%; Citizen of the PRC Wang Xinlei – 5%.

On 21 December 2015, the «Framework Agreement» was signed between the Seller represented by V.O. Boguslayev and the Buyer represented by Likatron Enterprises Limited, Likatron Enterprises Limited under the terms of which the latter acquires ownership of 311,699 (15%) shares of JSC «Motor Sich». Consideration under the above-mentioned framework agreement is 43 million US dollars and is transferred by the Buyer to the corresponding escrow account after signing a new Escrow agreement.

Escrow Agreement dated 21 December 2015 signed by the Seller – V.O. Boguslayev, Buyer – Likatron Enterprises Limited, and UBI Banca International S.A. as Escrow Agent, where a special escrow account No. 987220 was opened, account holder – Project Zoom II Escrow Account, to which on 29 December 2015 funds in the amount of 43 million US dollars were received.

In execution of the «Framework Agreement», a contract of sale and purchase of shares of JSC «Motor Sich» No. 202/BV dated 7 July 2016 was drawn up, signed by the Seller – V.O. Boguslayev and Buyer – Wang Xinlei. According to the terms of the contract, V.O. Boguslayev carried out the sale of 104,107 shares (5.01%) of JSC «Motor Sich» to Wang Xinlei, in the amount of 14,362,000 US dollars.

According to Memorial Order No. 22448 dated 2 August 2016, V.O. Boguslayev to account No. 26203001000326 opened in JSC «Motor-Bank» (bank code – 313009), on 2 August 2016 received funds in the equivalent of 14,362,000 US dollars (UAH 355,940,986.05) from Wang Xinlei. Payment purpose: «SWF 16/08/01 agr. No. 202/BV between Boguslayev and WANG XINLEI dtd 07.07.16 ref. No. 56772 dtd 01.08.16. PROJECT ZOOM II E A UBI BANCA INTERNATIONAL SA ON BEHALF WANG XINLEI».

In execution of the «Framework Agreement», a contract of sale and purchase of shares of PJSC «Motor Sich» No. 203/BV dated 7 July 2016 was drawn up, signed by the Seller – V.O. Boguslayev, Buyer – Likatron Enterprises Limited. According to the terms of the contract, V.O. Boguslayev carried out the sale of 207,592 shares (9.99%) of JSC «Motor Sich» to the company Likatron Enterprises Limited, in the amount of 28,638,000 US dollars.

According to Memorial Order No. 22450 dated 2 August 2016, V.O. Boguslayev to account No. 26203001000326 opened in JSC «Motor-Bank» (bank code – 313009), on 2 August 2016 received funds in the equivalent of 28,638,000 US dollars (UAH 709,750,588.95) from Likatron Enterprises Limited. Payment purpose: «SWF 16/08/01 agr. No. 203/BV between Boguslayev and LIKATRON ENTERPRISES LIMITED dtd 7 July 2016 ref. No. 56774 dtd 01.08.16. PROJECT ZOOM II E A UBI BANCA ENTERPRISES LTD».

The transfer of funds to the accounts of V.O. Boguslayev, as well as to accounts of offshore companies controlled by O.V. Boguslayev from all special escrow accounts in UBI Banca International S.A. was synchronous in nature after the completion of re-registration of corporate rights and confirmation thereof by citizens of the PRC.

Thus, V.O. Boguslayev and O.V. Boguslayev in an unidentified place by prior conspiracy of a group of persons committed unlawful concealment of sources of origin of 650 million US dollars, disguised under the documentary appearance of lawful sale of shares of the enterprise JSC «Motor Sich», which had previously been unlawfully and illegally misappropriated by V.O. Boguslayev, which facilitated terrorist activity, which according to the official exchange rate of the National Bank of Ukraine as of 2 August 2016 amounted to 16,135,080,000 hryvnias, and therefore exceeds eighteen thousand tax-free minimum incomes of citizens and is an especially large scale of legalization (laundering) of revenues obtained by criminal means.

Under these circumstances, V.O. Boguslayev is reasonably suspected of committing, by prior conspiracy of a group of persons, actions with the aim of concealing and disguising the illegal origin of funds obtained as a result of committing a socially dangerous unlawful act that preceded the legalization (laundering) of revenues, movement, changing their form (conversion), as well as using funds or other property obtained as a result of committing a socially dangerous unlawful act that preceded the legalization (laundering) of revenues on an especially large scale, that is, a criminal offense under Part 3 Art. 209 of the Criminal Code of Ukraine (Article 209 as worded in Law No. 430-IV dated 16 January 2003; with amendments introduced pursuant to Laws No. 2258-VI dated 18 May 2010, No. 4025-VI dated 15 November 2011, No. 1702-VII dated 14 October 2014, No. 770-VIII dated 10 November 2015).

Senior Investigator for Particularly Important Cases of
the 1st Department
of the 1st Directorate of Pre-Trial Investigation
of the Main Investigation Directorate
of the Security Service of Ukraine
Lieutenant Colonel of Justice  **Denys ROMASHKIN**

«APPROVED»

Head of the First Department of the Directorate
for Organization and Procedural Guidance
of Pre-Trial Investigations and Support of
Public Prosecution in Criminal  **Denys**
Proceedings of Security Agencies **DOLBESHCHENKOV**
of the Department for Oversight of Compliance with
Laws by Security Agencies
of the Office of the Prosecutor General

Pursuant to provisions of Arts. 42, 276, 277 of the CPC of Ukraine, suspect V.O. Boguslayev was explained his procedural rights and obligations, namely:

1. A suspect is a person who, in accordance with the procedure provided for by Articles 276–279 of this Code, has been notified of suspicion, a person who has been detained on suspicion of